

Title Title (*Prospectus*)ANONYMISED AUTHOR(S) *Anonymised Institution(s)*

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I. INTRODUCTION

Massachusetts Congresswoman Ayanna Pressley often says that “the people closest to the pain,” those doubly burdened by sedimented inequality and the carceral state, “should be closest to the power.” Like Pressley, State Senator Liz Miranda also centers her “proximally-impacted” identity, drawing on familial and personal experiences with the carceral state. Both routinely meet with constituents in prison and quote them in floor speeches and media, maintain ongoing lines of communication with their loved ones, and center the knowledge of and preferences of carceral communities in their policy work. Their representational styles suggest that legislators’ own experiences with or proximity to the carceral state can shape not only their approach to policy, but how they interact with constituencies. In the degree to which Pressley and Miranda’s representational styles are unusual, moreover, this demonstrates whether incarcerated people appear in political life as constituents whose preferences and knowledge is relevant to governance – or simply as the objects of it.

 Anonymised submission.
This is a manuscript submitted for review.

Introducing the Puzzle

① However, Indeed, ever-expanding scholarship on representation and on carceral state politics suggests that these

examples may be exceptional. Legislatures remain dominated by white, socioeconomically advantaged elites (Carnes and Lupu 2025). The race, socioeconomic background, gender, and in some cases

occupations of legislators are predictive of their policy responsiveness (Whitby 1997, Carnes 2012, Mutpfay 1997, Hansen et al 2018), service responsiveness (Butler and Broockman 2011, Costa 2017), and how they speak about – or symbolically represent – their constituencies (Vishwanath 2025, Ban and Kaslovsky 2025). At the same time, scholars of criminal legal politics have documented that

the over two million people incarcerated in the US and many more affected by the carceral state through family and community ties are disproportionately Black, Latino, and low-income. Moreover, these constituents are subject to systematic political exclusion through disenfranchisement, prison gerrymandering, geographic and communicative isolation, and stigma, all creating or compounding representational disincentives and barriers (Nellis 2014, Weaver and Prowse 2020; Eckhouse 2018). So, while scholars have shown that the visibility, legibility, and frequency of contact (Fenno, Miler) coupled with legislators' own identities can determine which groups are constructed as constituencies and the degree to which their interests, preferences, or perspectives are made visible; and we know that carceral state contact creates compounding barriers to political legibility; we do not have a clear picture of whether and how legislators' own experiences with or proximity to (or distance from) the carceral state shapes representational behavior and outcomes. Moreover, we do not know whether and when carceral citizens register as constituents at all.

Theory

Representation for carceral-impacted populations may fail across three dimensions: substantive responsiveness, symbolic recognition, and service responsiveness. While existing frameworks treat these as either collapsed or sequential, they are better understood in relation to epistemic inclusion. (?)

In this prospectus, the theoretical innovation is twofold. First, it extends the descriptive representation literature to treat legislators' proximity to the carceral state as a dimension of lived experience that

In contrast, tell us about carceral state population & its growth, who is affected.

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Need? Can you actually test this?

Show, don't tell

Loosing your way here

shapes representational behavior, paralleling how race, gender, and class have been shown to matter and that may open the door for examination of other forms of experience (experiential descriptive representation, intersectional). Second, this prospectus draws on social epistemology (Pottle 2025, Fricker 2018) to introduce epistemic inclusion as a third tier — distinct from both symbolic, service, and substantive — that captures whether carceral-impacted people are not only treated as constituents but constructed as knowers whose perspectives are legitimate inputs to governance, or merely as policy objects. (and/or may help explain what's going on when acts of substantive and symbolic representation are hollow/distancing).

Building on scholarship that shows carceral contact and membership in race-class subjugated communities more broadly generates a specific form of political knowledge (Weaver, Pistorn ^{*} Prowse) about the state's coercive "second face" (Gottschalk 2008, Cohen 2010, Roberts 2012, Lerman and Weaver 2014, Soss and Weaver 2016) I suggest that carceral constituencies should be understood as holding distinct, organized, and coherent preferences and knowledge that warrant representation. Yet ongoing marginalization in electoral-representative politics suggests that "descriptive representatives" for these constituencies may rarely be present. While poor constituencies are primarily represented (in Congress) by "proxies" (Miler 2018) — legislators not themselves from the low-income districts, who tend to be women and racial minorities — and Black legislators and legislators of color historically champion criminal legal reform (Eckhouse), I draw on evidence of stigmatization, social constructions, and electoral incentive to suggest that even potential "proxies" may not be immune from pressures to distance or sanitize their representational acts. The result may be not simply absence across dimensions, but qualitatively different forms of substantive or symbolic representation such that when these acts occur, they "selectively hear" or support problem definitions or policy solutions that diverge (Weaver and Decker 2014), or that reaffirm their marginalization through hollow or distancing gestures that maintain constructions of carceral communities' knowledge and preferences as irrelevant for governance. Drawing on social epistemology, I argue this exclusion operates through two distinct mechanisms: testimonial injustice, in which carceral-impacted people are constructed as uncredible knowers whose claims are discounted or dismissed; and hermeneutic injustice, in which the interpretive frameworks governing legislative deliberation lack the resources to make sense of carceral life on its own terms.

Directly carceral-impacted legislators may be distinctively positioned to address hermeneutic injustice in particular — not only if they are less susceptible to negative social constructions of criminality, but because they possess practical knowledge other legislators may lack: how to maintain contact with incarcerated constituents, how to read carceral bureaucracy, how to recognize when policy language obscures rather than reflects carceral realities. Moreover, they may be those representatives most likely to engage with carceral constituencies as constituents in the first place.

Methods

I explore this ~~(pithy unified question)~~ in three stages. First, analysis of cross-sectional survey data establishes an empirical baseline: that carceral-impacted populations hold internally coherent, reform-oriented criminal justice policy preferences and democratic knowledge that systematically differs from those of non-impacted respondents — providing affirmative evidence that there is a constituency with distinct preferences whose representation can be evaluated. Second, the project constructs two original datasets: one documenting state-level policies governing eligibility barriers to candidacy and public office for people with criminal legal contact, and a second cataloging state legislators with direct experience, establishing a baseline measure of the scope of descriptive representation for this constituency and raising foundational questions about what descriptive – or good - representation even means in this context or why it matters explored in the third empirical chapter. There, semi-structured interviews with legislators — including directly and proximally impacted lawmakers — and with incarcerated organizers examine how proximity to the carceral state shapes representational orientations, how carceral constituents are conceptualized (or not) within legislative practice, and what forms of recognition matter to those being represented. [Placeholder: preview of results and empirical highlights to be added.] A natural extension of this project, reserved for future work, would apply computational text analysis to legislative speech to examine symbolic and epistemic inclusion at scale — a design this prospectus motivates but does not execute.

~~Hedge and Implications~~

→ insert discussion of responsibility implications.

This project does not resolve the causal questions, like whether representational exclusion produces policy outcomes or shapes carceral citizens' political engagement. Nor can cross-sectional data fully adjudicate the relationship between carceral contact and the preferences and knowledge it may generate. What this project can do — and what no existing study has done — is establish the descriptive baseline that makes those questions empirically tractable: whether carceral constituencies are recognized at all, by whom, in what forms, or whether descriptive congruence in this context matters.

II. THEORY

Evaluating Democratic Representation

Representation is the normative core of democratic theory and evaluation. Political scientists have long understood democracy as not just a set of institutions and procedures, but rather as a ^(living?) system whose legitimacy rests on the degree to which public authority reflects, responds to, and is accountable to the people it represents (Locke p 1980, Pitkin 1967). Yet, there is little consensus about what constitutes a ^{Repetition?} “good” representational ~~environment~~ (Horowitz 2003, Lijphart 2004, 2012), or “good” or even possible representation (Pitkin 1967, Achen and Bartels, Disch) – nor is there consensus on how such things are best measured (Broockman, Mia). ^{New para} One way these debates about democratic representation diverge is over the direction of their evaluative attention. Some scholars look “upstream,” or locate democratic quality in the institutional design of electoral systems, party structures, and incentive environments that regulate access to office and shape political behavior (). Others look “downstream,” and judge representation by its consequences: “substantive” policy outputs, distributive equity, and responsiveness – either to constituent preferences and interests, or to “service responsiveness” to constituent contact. ^{for note} Some dynamics – such as institutional cultures and norms – operate across both “streams.” They function as upstream filters that shape who enters office and as downstream consequences reshaped by who is present. ^{word choice?} Both perspectives, however, ^{For these, good Rep is ...} implicate a prior empirical question: who holds office?

^{or diff transition; one way to evaluate "good" focused on desc}
~~What is Descriptive Representation?~~ The study of who holds office – and the degree to which their ^{Rep.} characteristics are congruent with those of the populations they govern – is the domain of descriptive representation: whether “representatives are in their own persons and lives in some sense typical of the larger class of persons whom they represent (Mansbridge 1999, 629). First taken up systematically in the 1950s (Matthews 1954), the concept has since been examined across dimensions including race, gender, ethnicity, occupation, education, wealth, and class background (Carnes & Lupu 2024).

~~**Descriptive Representation in Theory**~~ [I originally introduced why descriptive representation matters in theory here, but in trying to organize the empirical section in a more streamlined way, held off on

this – it is a bit incorporated throughout the empirical.]

Patterns and Mechanisms: Empirical Literature on Descriptive Representation

Indeed, a large empirical literature has employed descriptive representation as a core indicator of democratic inclusion and institutional performance. Across geographic contexts and various levels of government (), scholars have established evidence on who representatives tend to be, when these compositions change, and both what produces them and their consequences.

~~*Who Governs: Persistent Gaps in Legislative Composition*~~ The composition of who holds elected office shows that formal equality has not produced equality of representation. In general, women are unrepresented in political office; across state legislatures, gender representation varies considerably, from a third in some states to “less than one in 10 female legislators in other states” (Atkeson and Carillo 2007). Although black and minority descriptive representation has made gains since the passage of the Voting Rights Act, Congress and state legislatures fall well short of proportional representation (McClain & Carew 2017; Pew 2023) - Black representatives constitute only 10.5 % of state legislatures, and Hispanic representatives 6.3%. Moreover, elected officials in Congress and state legislatures are “almost always wealthier, more educated, and more likely to come from white-collar jobs than the citizens who elect them” (Carnes 2012). In Congress, less than 2% of the average representative’s pre-congressional career was spent in working-class jobs, contrasting sharply with the over 50% working-class composition of the U.S. labor force (Carnes and Lupu 2015). Moreover, these disparities tend to be exacerbated in positions of leadership (footnote: though not always for women, proportions in leadership positions roughly reflect overall proportions (Whicker and Jewell 1998).

"UPSTREAM" + INTERACTIONS - A dedicated literature explains these enduring gaps with "upstream" or institutional causes. Party gatekeeping, gendered and racialized candidate recruitment, masculinized institutional cultures, and persistent bias have been shown to contribute to what sociologists Melvin Oliver and Thomas Shapiro term "sedimented inequality" that elections alone do not correct (Carnes & Lupu 2023; Clayton 2021). Other scholars focus instead on the interactions between these

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matters of institutional design and descriptive representation, and their downstream effects. One area of literature, for example, debates the impact of apportionment and the presence of minority candidates on minority political participation (Campbell et al. 1960; Rosenstone & Hansen 1993). Another literature shows racialized legislative institutional culture, persistent bias or hostility, and unequal resource and position distribution within legislative bodies stymie Black representatives in passing legislation (Bratton and Haynie, 1999; Hawkesworth 2003; Haider-Markel 2007; Preuhs 2006). Institutional design like that facilitating direct democracy, moreover, can influence how legislators perceive policy preferences - Caron (2021) finds that the presence of ballot referenda is associated with legislators' perceptions of their district's punitiveness as closer to a median voter's.

~~DOWNSTREAM~~ Clearly, then legislators' characteristics matter because they are associated with "downstream" consequences of descriptive representation. Here, scholars have found that descriptive representation shapes four groups of outcomes: ~~substantive~~ representation, ~~symbolic~~ representation, service responsiveness, and constituency effects.

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Substantive Representation Substantive responsiveness - the degree to which legislative behavior reflects the policy interests of constituents- is the most prevalent focus. Two primary models of representation structure this literature. "Dyadic" representation evaluates the congruence between individual legislators' policy actions and their districts' preferences (Miller and Stokes 1963), while "aggregative" or "collective" representation examines the extent to which legislative bodies as a whole or policy landscapes reflect macro-level public opinion. (Stimson, McKuen, et?)

A first cluster of findings illustrates that descriptive representatives do not merely speak for their "descriptive" constituencies, but tend to share their orientations. Wealthy legislators hold views that are congruent with wealthy constituents, and this alignment shapes policy advocacy even independent of electoral incentives (Carnes & Lupu 2023; Meltzer & Richard 1981; Piketty 1995); and it is worth noting that legislators' tendency to assume their constituencies are more conservative on fiscal and social issues than they are in actuality may further inflate such perceptions (Broockman and Skovron 2018, Krimmel, Lax and Phillips 2016). On racial and ethnic dimensions, the pattern holds particularly across distributive policy domains, where legislators' identities shape their preferences in ways that again persist beyond what electoral incentives alone can explain (Reingold 2000; Broockman 2013;

Hakhverdian 2015; Lupu & Warner 2022). Despite debates over measurement of preference congruence (Lax and Phillips 2012, Gilens 2012, Broockman 2016), it is clear that descriptive composition of legislatures can structure whose interests are represented in the room before any single vote is cast.

A second cluster of findings focuses on legislative action. Representatives are more likely to sponsor, cosponsor, and vote for legislation benefiting the groups they descriptively represent ((Bratton and Haynie 1999; Reingold 2008; Rouse 2013; Barnello and Bratton 2007; Saraceno, Hansen, and Treul 2021; Grose 2011). That these patterns are not only dyadic - the overall share of minority legislators within a chamber explains shifts in substantive representation for Latino and Black constituencies, particularly at the state level - suggests that in some contexts a critical mass is necessary to produce responsiveness (Preuhs 2006, 2007; Haynie 2001; Owens 2005) or that collective representation is "necessary for translating descriptive representation into substantive policy outcomes," (Rocha et al. 2010 page). In particular, those contexts include racialized legislative cultures, which may diminish the rate at which Black-sponsored legislation is passed (Bratton and Haynie 1999). The gender-to-substantive-outcome-pipeline is contested (Crowley 2004, Rolbert and Steurnagel 2001, Weldon 2002). These findings direct attention towards the conditions under which policy action translates to outcomes, and necessitates attention to descriptive representation's impact on matters of the policy process and agenda change - a third cluster.

Here, scholars have shown that descriptive representation shapes what makes it onto issue agendas and how problems are framed. Bills backed by civil rights organizations, for example, are more likely to receive committee attention when those committees include greater proportions of Black and Latino members (Minta 2011), and when the entry of Black women into Congress has facilitated the institutional articulation of interests that previously lacked legislative voice - were excluded (Brown 2014; Brown, Clark, Mahoney, and Strawbridge 2023). Moreover, evidence that gender and racial/ethnic descriptive representatives spend more political capital on such legislation suggests not only salience, but acts of substantive representation should be understood as qualitatively distinct (Burrell 1997, Murphy 1997, Minta 2009, Butler and Broockman 2011). Such agenda-setting and deliberative effects help explain why descriptive representation is particularly likely to lead to substantive policy gains for underrepresented groups in moments of policy innovation or when issues are in early stages of

redress (Bratton and Ray 2002), and are consequential in their own right, including their connection to constituent effects, which we will turn to later.

But what explains these patterns? One area of scholarship has answered that descriptive representatives and constituents may intrinsically share preferences; that legislators' identities shape their political orientations in ways that go beyond strategic responsiveness to district demographics, which influenced a legislators' election (Broockman 2013; Reingold 2000). Another explanation focuses on legislators' relational worlds. In his foundational ethnography of 18 House members, Fenno (1978) finds that of legislators' understand their districts as constituted by a "nest of concentric circles," or subconstituencies whose visibility and influence on the legislators' behavior is conditioned on both their perceived relevance for re-election, but also the degree to which they are "visible" to and interact with the legislator. "The greater proportion of two-way communication," he writes "the more likely is there to be both electoral accountability and responsiveness on the part of the representative" (Fenno 1979). Christina Miler's work on legislator perceptions extends Fenno's model. In addition to showing that descriptive representation should consider legislators and also their staff, Miler's "dyadic theory of subconstituency representation," draws out particular relational mechanisms that explain constituent salience: legislators' informational environments, familiarity with constituency groups and their issue preferences, frequency of contact and campaign contributions, and the presence of other constituency groups with whom a constituency's interests compete (2016). Thus, while some suggest descriptive representation translation to responsiveness boils down to partisan identity, who a legislator perceives as their core, re-election, and primary constituencies – whose concerns register as politically salient – is itself is partly a function of shared experience and identity. Moreover, party identification and orientation themselves may be downstream of social identities and experiences that descriptive representation indexes, rather than independent alternatives to them.

To summarize: descriptive representation influences policy outcomes, and before that who receives institutional attention. This may be in part because descriptive representation influences who legislators perceive as politically relevant. Here, then, the question of when descriptive representation matters most becomes a question about whether constituencies are visible or invisible without descriptive representation. Literature on the connection between descriptive and symbolic representation helps

answer it and explain another dimension.

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Symbolic Representation Scholars interested in *symbolic* responsiveness more often approach representation through dyadic models or "surrogate" models of representation "wherein a legislator represents constituents beyond his own district" (Miler 2018, 131). While some emphasize surrogate representation's substantive function of allowing for the representation of interests and preferences that, according to Saward (2010), may be "widely held, but, due to formal territorial representation, do not have the political voice that their numbers of significance merit" (22), it is particularly important to literature on symbolic representation.

Broadly, symbolic representation is understood as aiming to "forge links between individual and group concerns. . . transforming 'What have you done for me lately?' into 'What have you done for us lately?'" (Popkin 1996, 12), or speech and gestures that signal inclusion and political membership of groups and shared interpretive frames. These gestures may be diffuse and embedded in everyday political communication beyond floor speeches and mailers. Early empirical work often relied on indicators like commemorative legislation or reference to specific historic symbols (e.g. Tate 2003, Sinclair-Chapman 2002). Advances in large scale text analysis, however, have made it possible to study symbolic representation systematically through much larger quantities of legislators' speech. Notably, Vishwanath's (2025) analysis of congressional newsletters and floor speeches operationalizes symbolic representation as speech that invokes minority groups either by name or via symbols, and provides the most comprehensive empirical examination of symbolic representation to date. His findings – that white legislators are more likely to symbolically reference racial minority groups when those groups comprise a larger share of their constituency – adds to evidence that symbolic representation is structured by incentives: legislators speak more about groups with whom they associate clear policy interests and are in greater contact (Fenno 1978), and who are electorally visible (Miler 2010, Gillion 2013, Enos et al 2019), suggesting that symbolic representation is like other forms of responsiveness that are conditioned by the degree to which a group is seen as valuable for re-election, and as deserving (Mayhew 1974, Schneider and Ingram 1992).

Symbolic representation literature builds on Popkin's (1994) interest in how voters internalize symbolic cues like Gerald Ford's widely-cited husk-biting tamale incident to form political judgements.

Such moments function as “tests” of recognition and shape voters’ perceptions of whether a candidate understands or cares about their community (and political outcomes in turn) underscoring an epistemic dimension of symbolic recognition. These moments can signal whether – or not – a representative possesses the resources necessary to articulate a group’s experiences within political discourse and frame political problems and solutions in resonant ways (Pottle 2025). Moreover, while symbolic representation as communicative practice can be observed, coded, and analyzed through legislative speech, Popkin’s example obviates that not all symbolic gestures are alike (Eulau and Karps, 1977).

Service Responsiveness and Constituency Effects

[Brief findings on service responsiveness: descriptive representation appears to matter because legislators discriminate/are more responsive to constituents of shared racial identity.]

- Descriptive representation also shapes legislative responsiveness more broadly: legislators discriminate in constituent service on the basis of race (Butler & Broockman 2011) . These matters may compound – note Minta example. Thus, scholars have also shown that descriptive representation can influence trust, rates of participation, and even for example whether racial minority constituents run for office.
- Black constituents consistently report feeling better represented — having a stronger say in government actions — when represented by Black legislators (Gleason & Stout 2014).

A third category of effects extends beyond policy and process to what might be termed constituency effects, or relational dimensions: the ways in which who governs shapes perceptions of institutional legitimacy, political trust, and civic inclusion. Black descriptive representation generates political empowerment and participation among Black citizens – even leading constituents to be more likely to run for office themselves (Bobo & Gilliam 1990; Clark 2019; run-for-office). Greater presence of working-class legislators is associated with increased trust in political institutions in Latin American contexts (Carnes & Lupu 2023), and women’s descriptive representation is linked to trust in democratic institutions among women (Clayton 2021). These effects — trust, engagement, perceived standing — are central to democratic functioning yet are neither automatic nor uniform. They interact with sedimented institutional cultures and norms, and they vary by context in ways that motivate closer

attention to when and for whom descriptive representation matters most. It is to this variation that the theory now turns.

Handwritten note: I think the guiding question here should be – which groups? Don't just recap the literature build out a justification –

When Descriptive Representation Matters: A Contingent Framework & faster.

The relatively narrow set of characteristics of representatives taken up by descriptive representation scholarship reflects, in part, that not all social categories merit scrutiny for congruence or indicate representational failure when absent. Moreover, characteristics that merit descriptive representation in some policymaking contexts may not merit scrutiny in others. As Mansbridge (1999) famously notes, the representation of left-handed individuals is probably not a critical measure of democratic health, except in “deliberation when their perspectives are relevant to a decision (e.g., in decisions regarding the design of surgical instruments)” (635). The question, then, is not whether descriptive representation is universally required, but the conditions under which it becomes particularly important – and for whom.

Four Contexts and Criteria: Mansbridge's Foundation Mansbridge (1999) offers a foundational contingent framework that identifies four historically specific contexts. Two enhance substantive representation – downstream process and policy effects – by improving the quality of deliberation. Namely, in contexts of communicative distrust between dominant and subordinate groups, histories of dominance breed inattention from the powerful and distrust from the marginalized, such that non-descriptive representatives may be unable to serve as effective surrogates. Here, shared experience facilitates the vertical communication between representatives and constituents on which responsiveness depends. In contexts of uncrystallized interests – where issues are new to the political agenda and parties and candidates have not organized around them – descriptive representatives draw on shared experiences to navigate unpredictable issues through horizontal communication among legislators. Mansbridge also notes upstream causes of representational congruence. First, when a group's “ability to rule” has been historically questioned, particularly through legal exclusion from voting or governing, the absence of group members from office reinforces the social meaning that such persons are unfit to rule; proportional presence disrupts that message, and Mansbridge argues this matters more for

changing the psychology of dominant groups than for providing role models to subordinate ones. Finally, in contexts of low de facto legitimacy, seeing members of one's group – for constituents – governing enhances the empirical legitimacy of the polity itself: the sense that one's voice was present in deliberation, even if policy outcomes do not mirror their preferences or interests.

More narrowly, Mansbridge offers four criteria: groups that are proportionally underrepresented relative to their population share, whose members consider themselves unable to be adequately represented by non-group members, and where evidence indicates that dominant groups have historically made it difficult or impossible for the group to represent itself. Here, a history of legal exclusion from the vote is a particularly strong indicator, which scholars of racial congruence have underscored (UNC, Brown). Similarly, scholars of gender politics have produced a burgeoning literature, and both have also supported Mansbridge's position that descriptive representation helps to mollify communicative distrust (Gay 1996, Haynes 1997).

Deepening the Framework: From Distrust to Cyclical and Incentivized Exclusion Feminist and comparative scholars have extended this framework. Clayton (2021) Clayton (2021) argues that descriptive representation is normatively defensible for women even before we reach the question of policy effects. When equality of formal opportunity does not produce equality of presence — because of sedimented institutional cultures, persistent bias, and structural gatekeeping — that absence is itself an indicator of representational distortion, not merely a precondition for it. This reframing, echoed in arguments about racial and class underrepresentation (Carnes & Lupu 2023; Phillips 1995; Dahlerup 2007), positions the inclusion of structurally sidelined groups as a matter of representative justice: procedural democracy does not self-correct when institutional norms and cultures systematically filter who is seen as a viable candidate, whose concerns are treated as politically relevant, and whose presence is perceived as legitimate.

Recent scholarship presses further, suggesting that the conditions Mansbridge identifies may be deeper and more structurally entrenched than her framework alone implies. Pottle (2025) develops Fricker (2018's) the concept of *testimonial injustice* to policymaking contexts. Where Mansbridge describes communicative distrust as a product of historical dominance — a residue that shared experience can bridge — this concept allows Pottle to argue that the communicative breakdown is not

merely inherited but actively reproduced due to electoral incentives[KM1] . Legislators face structural pressure to anchor their messaging in the understandings of strategically valuable constituencies — moderate white voters, affluent donors — and the infrastructure of legislative responsiveness (constituent communications processing, meeting access, staff gatekeeping) grants these constituencies disproportionate epistemic authority. Groups constructed as uncredible within this economy of strategic value find their testimony filtered or discounted not because individual legislators are inattentive, but because the electoral connection itself incentivizes inattention.

Pottle's employs *hermeneutic injustice* to similarly deepen Mansbridge's account of uncrystallized interests. Mansbridge treats uncrystallized interests as a relatively benign feature of the political landscape — some issues simply have not yet made it onto the agenda, and descriptive representatives are uniquely positioned to introduce them. Viewed from this [term] standpoint, we can understand that some interests *appear* uncrystallized not because they are genuinely new, but because the hermeneutic resources needed to articulate them have been systematically excluded from mainstream political vocabulary — a "mainstream" that is itself defined by the epistemic preferences of advantaged constituencies. Communities facing sustained contact with punitive or redistributive state institutions, for instance, may have developed rich, internally coherent understandings of state power and their relationship to it — articulated political knowledge, shared vocabularies, theories of the state "from below" (Weaver, Prowse, & Piston 2020) — that are not granted standing in elite or even dominant policy discourse. These interests appear uncrystallized [to whom?] because a "*resonance imperative*" — the incentive for legislators to articulate problems and solutions in terms that cohere with high-value constituencies' existing understandings — gives policymakers no reason to adopt or legitimate the vocabularies through which those experiences are understood. The result is a form of epistemic exclusion that is structurally produced rather than merely incidental: a group's efforts to articulate or intervene with their knowledge are sidelined or denied because that knowledge was already outside the political mainstream.

This epistemic dimension also extends Mansbridge's third and fourth contexts. Her arguments about "ability to rule" and *de facto* legitimacy are fundamentally about who is perceived as a legitimate political actor — and she argues that these perceptions are goods in their own right, beyond their

implications for substantive representation. But Pottle's framework suggests the question is not only whether a group is seen as able to *rule* but whether it is seen as able to *know* — whether its members' experiences count as politically relevant knowledge at all. Hermeneutic and testimonial injustice do not merely exclude groups from governing; they exclude groups from the epistemic community whose understandings shape policy. This constitutes a deeper form of the second-class citizenship Mansbridge describes, because it means that even when members of a group are physically present in deliberative spaces, their experiential knowledge may not be granted epistemic standing. Presence without epistemic authority is a hollow form of inclusion.

And, who have been excluded historically

Taken together, these theoretical developments sharpen the conditions under which descriptive representation is most analytically consequential. If subordinate groups' interests are merely uncrystallized — awaiting articulation on a gradually expanding political agenda — then descriptive representation is instrumentally useful: it brings new information and perspectives into deliberation. But if those interests are hermeneutically suppressed, and if the groups that hold them face testimonial injustice within the structures of legislative responsiveness, then the absence of descriptive representation is not merely an informational loss. It is an active form of epistemic exclusion that reproduces the conditions of its own perpetuation — a feedback loop in which the political knowledge of marginalized communities is excluded from elite discourse, that exclusion shapes what counts as "common sense" in policymaking, and those distorted common-sense understandings further justify the marginalization of the excluded group's knowledge. Moreover, likely surrogate representatives and descriptive representatives may not be immune from such pressures. Descriptive representation is most critical, then, for groups whose voices are filtered, discounted, or systematically absent in ordinary democratic practice — groups whose absence from political institutions is itself an indicator of representational distortion, and for whom inclusion carries implications not only for policy outcomes but for the epistemic terms on which democratic judgment is formed: whose experiences are heard, whose claims are treated as politically relevant, and whose vocabulary is politically intelligible. [KM1] the intrinsic motivation of descriptive representatives to represent group (Broockman 2013, Reingold 2000) could interrupt?

Representational Stakes of the Carceral State: A Case for Descriptive Representation

The Scale and Reach of the Carceral State Carnes and Lupu (2024) call for heightened attention to descriptive representation across various categories and their intersection. The expansion of the penal state provides strong theoretical and empirical reason to treat carceral citizens – those directly incarcerated, under community supervision, and those proximally impacted through family, neighborhood, repeated police contact, and victimization – as a group that fits established criteria for heightened representational relevance. Over the past four decades, the carceral state has grown into one of the most expansive governing institutions in American life, touching nearly 7 million people at any given time and millions more through arrest, surveillance, and conviction (Western 2006; Wildeman & Muller 2012). As Lerman and Weaver argue (2014), carceral contact has become a central, visible point of contact that produces myriad negative and accumulating feedback effects. Confinement, exposure to violence and stress inside facilities, disrupted access to care, and post-release instability generates myriad physical and mental health problems (Massoglia & Pridemore 2015, Lee et al 2014, Johnson & Raphael 2009); stigma, disrupted earnings, and time out of the work force reduces callback rates, lowers wages, and reduces overall lifetime earnings (Western 2006, Western & Pettit 2005, Pager 2003, 2007). Carceral contact produces housing instability (Geller & Curtis) that, compounded with legal and financial extraction (Harris 2016) maintain financial precarity and generate increased public assistance needs just as carceral contact removes access to public benefits).

~~*Four Contexts and Criteria: Mansbridge's Foundation*~~ These effects are not confined to those formally incarcerated. The political science, sociological, and economic literatures on collateral consequences document how incarceration reverberates through intimate partners, children, and communities—depressing wealth accumulation, destabilizing housing, disrupting education, eroding health, and weakening social ties (Wakefield & Wildeman 2013; Wildeman & Lee 2021; Brew, Alani, & Wildeman 2022). Nearly one in four Black children will experience parental incarceration before adolescence; millions of women experience incarceration indirectly through partners or sons; and entire neighborhoods cycle residents through surveillance and confinement. Even victims of crime are

governed primarily through punitive institutions and encounter the state through carceral channels, placing them within the same governing architecture.

~~*A Structurally Bounded Constituency*~~ Moreover, the effects of the carceral state are not evenly distributed across the population but are highly concentrated by race, class, age, and place, rendering carceral citizenship a structurally bounded constituency rather than a diffuse condition. Race, age, and class are all highly predictive of being subject to aggressive surveillance and punishment, with Black and Latino Americans—especially young men—vastly more likely to experience policing, arrest, detention, incarceration, and supervision (Gelman, Fagan, and Kiss 2007; Baumgartner, Epp, and Shoub 2018; Davenport, Soule, and Armstrong 2011). More than one quarter of Black men from prison-boom cohorts have been incarcerated, and among Black male high school dropouts born after the mid-1970s, nearly 68 % have been imprisoned (Western and Pettit 2010). Nearly one in four Black children will experience parental incarceration before age fourteen (Wildeman 2009), and 44 percent of Black women report having an immediate family member incarcerated, compared to 12 percent of white women (Lee et al. 2015).

These patterns are layered onto existing class stratification: the nearly two million people incarcerated in the United States are almost uniformly working class and disproportionately Black or Latino/a—groups already least represented in state and federal government (Carnes 2013, 2015, 2018). The “punitive turn” (Wacquant 2009) and mass incarceration thus do not merely reflect preexisting inequality—they compound and institutionalize it. Because incarceration and supervision are spatially clustered, these harms are collective and place-based: the collateral damage to African American communities cannot be captured by aggregating individual effects (Roberts 2004), as neighborhoods saturated by imprisonment may lose political power, economic stability, and social capital. Moreover, these disparities reflect a broader racialized political culture in which crime coverage privileges white victims and penalizes Black Americans (Dixon and Linz 2000a; Bjornstrom et al. 2011), juries seek mitigating information for white but not Black defendants (Levinson 2007), Black defendants are assumed more culpable and sentenced more harshly (Rehavi and Starr 2014), and even Black victims are assigned greater responsibility for their own harm (Donovan 2007; Israel-Trummel and Streeter 2021). Across policy domains—from welfare to policing—race shapes perceptions of deservingness

and culpability (Gilens 1996; Soss et al. 2011; Israel-Trummel 2022), embedding punishment within longstanding narratives that criminalize Blackness (Alexander 2010; Smiley 2017). Carceral citizenship may in turn be best understood as part a racialized and spatially concentrated regime of governance that layers carceral exposure atop existing inequalities in representation and political voice.

~~**Political Exclusion and Custodial Citizenship**~~ These groups are likely unrepresented in governing institutions. At the most basic level, millions of Americans are formally excluded from electoral participation. An estimated four million people were excluded from the 2024 elections through de jure disenfranchisement while incarcerated on felony convictions, or while on probation or parole — a figure that does not include the unknown number who fear or mistakenly believe they have been permanently disenfranchised (Uggen, Willen, & Larson 2024). Scholars have demonstrated that these disenfranchisement policies disproportionately target Black political power (Hinton & Cook 2021) and function as a component of mass incarceration’s broader distortion of American democracy and racialized social control (Beckett & Western 2001; Simon 2007; Wacquant 2010). Even where the law formally permits participation, the state frequently fails to make participation possible: in September 2024, California’s governor vetoed legislation aimed at ending the de facto disenfranchisement of eligible incarcerated voters, who lack any meaningful or systematized means of casting a counted ballot from jail. These Californians comprised the largest share of an estimated 500,000 people nationally who were unconstitutionally kept from participating in the subsequent elections (Wang 2024). Beyond the ballot, prisons and jails impose direct restrictions on the capacities that democratic participation requires — constraining movement, speech, association, and communication through censored mail, restricted phone access, and exclusion from public or legislative forums. These are not incidental features of incarceration; they are constitutive of institutions that, as Lerman and Weaver (2014) argue, have "broken significantly with the fundamental norms that define democratic institutions" by restricting citizen voice, undermining equality, and insulating state actors from accountability.

Proximal Political Exclusion and Custodial Citizenship Contact with criminal justice institutions also generates powerful negative policy feedbacks that extend democratic exclusion well beyond the prison walls. Lerman and Weaver (2014) demonstrate that carceral contact “produces extreme

* Generally, watch these long paras. Try to reduce to 4-7 sentences.

mistrust of political institutions and public officials,” diminishes citizens’ sense that they can influence politics, and teaches them “to stay in the shadows and to be wary of public authority.” Rather than cultivating efficacy or civic incorporation, as benefits-conferring programs may do, the punitive face of the state socializes individuals toward alienation, withdrawal, and redefined expectations of state authority — what Lerman and Weaver term “custodial citizenship.” While scholars have identified important exceptions, particularly in mobilization through proximal contact and perceptions of injustice (Walker 2020; Walker & García-Castañón 2017; Owens & Walker 2018), the predominant finding is that criminal legal contact depresses political participation across a range of behaviors (Burch 2011; Gerber et al. 2017; Haselswerdt 2009; Weaver & Lerman 2010; White & Nguyen 2021). Like others, these effects are not confined to those who are or have been incarcerated. They extend to families, social networks, and communities disproportionately targeted by policing and surveillance, where incarceration weakens social ties, collective efficacy, and organizational capacity (White 2019; Burch 2013; Clear 2009) – although scholarship increasingly highlights that proximal or community contact or targeting can generate mobilization (Anoll, Walker). Still, the cumulative result may be that carceral citizens are rendered systematically unlikely to appear in the channels that legislators rely on to perceive and respond to constituencies — voting, organized advocacy, routine constituent contact, or interest group representation — even as they are among those most governed by the state.

~~Meeting or Exceeding Mansbridge’s Criteria~~ This combination of formal exclusion, negative policy feedback, and spatially concentrated political suppression maps directly onto the conditions under which descriptive representation is most consequential to Mansbridge. Carceral citizens satisfy each of her criteria: they are proportionally underrepresented relative to their population share; they face historical and ongoing legal exclusion from voting and self-governance; and dominant groups have actively made it difficult for them to represent themselves.

However, custodial citizenship also produces bidirectional communicative distrust. Carceral contact is a form of engagement with the state that generates the alienation and wariness that Mansbridge argues shared experience can bridge on the part of citizens. But carceral contact also tags these citizens with an identity social constructions of incarcerated people as unrepentant, unredeemable, and dangerous (Schneider & Ingram 1993; Maltby & Kreitzer 2023) function as challenges to "ability

to rule" in Mansbridge's sense — reinforcing the message that such persons are unfit not merely for self-governance but for full citizenship, a message whose disruption may require the visible presence of those who have been so marked. And the exclusion of those most governed by the punitive state from the democratic processes that shape that state constitutes a legitimacy deficit of the kind Mansbridge's fourth context describes: a polity that systematically excludes the people most directly affected by one of its most coercive functions cannot credibly claim that all voices were present in deliberation. Here, the absence of carceral citizens from policymaking bodies may reflect not a failure of individual ambition but the accumulated weight of institutional barriers, sedimented cultures of exclusion, and persistent bias, that absence is itself an indicator of representational distortion (Clayton).

Towards a Knowledge-Based or "Epistemic" Account of Carceral Representation

Need a new section? seems related to above on why this group.

The depth of the representational challenge facing carceral citizens may exceed Mansbridge's framework, applied straightforwardly, for three reasons.

Unorganized Preferences or a Coherent Constituency? First, rather than understood as "uncrystallized" or awaiting a political entrepreneur to organize disorganized preferences into coherent interests, the preferences of people impacted by the carceral state may be better understood as structurally and "epistemically" excluded. While foundational representation literature sees the representation of group interests as mattering over the representation of group preferences (Pitkin 1967), this approach interacts with a problematic set of assumptions, including that groups like carceral constituencies do not have organized, coherent preferences or sufficient political knowledge to legitimate those preferences (Achen and Bartels). Recent scholarship clearly contests that assumption (Perez). Moreover, there is reason to think communities facing sustained contact with the carceral state have developed rich, internally coherent political knowledge. Weaver, Prowse, and Piston (2020) demonstrate that carceral-impacted communities have clearly articulated understandings of state power, shared vocabularies for making sense of punishment and citizenship, and what they describe as theories of the state "from below."

However, and second, this knowledge is not granted standing in elite political discourse. It may

appear "uncrystallized" because the resonance imperative — the structural incentive for legislators to articulate problems and solutions in terms that cohere with strategically valuable constituencies' existing understandings — gives policymakers no reason to adopt or legitimate the vocabularies through which carceral experiences are understood. Incarcerated people, who cannot vote, face barriers to other forms of political expression, and are racially and otherwise stigmatized, sit at the bottom of what Pottle (2025) calls the hermeneutic economy of legislative communication. Moreover, the stigmatization of carceral citizens gives reason for communicative distrust to run not just from these groups towards the state, but also from policymakers in what social epistemologists term "testimonial injustice." The same social constructions that mark incarcerated people as undeserving of policy generosity may also mark them as untrustworthy narrators of their own political experience — their testimony about conditions of confinement, about the effects of punishment on families and communities, about what justice requires, is filtered through credibility judgments shaped by the political vocabulary that constructs them as dangerous, deviant, or dishonest. While some might challenge the degree to which this is prejudicial within Fricker's conception, the point remains that within the infrastructure of legislative responsiveness, their communications may not receive the same epistemic weight as those of strategically valuable constituencies. Findings that democratic lawmakers "selectively hear," or discount the problem definitions and bundles supported by Black constituencies and instead only take up Black policy preferences when they converge with the preferences of white constituencies supports this claim (Eckhouse).

That is, if the knowledge or preferences of carceral citizens is heard to begin with. Instead (and third), their knowledge may be "hermeneutically" suppressed: sidelined not because it lacks coherence or political relevance, but because it was already outside a mainstream political vocabulary defined by the political orientations of advantaged constituencies who are descriptively over-represented. The result is that even well-intentioned legislators may avoid invoking incarcerated residents as constituents because doing so risks antagonizing moderate white voters — and when they do engage criminal legal reform, they may do so through vocabularies engineered for advantaged audiences, emphasizing efficiency, cost savings, or redemption narratives rather than centering the perspectives of those who have lived inside the system. This is what Pottle terms hollow signaling: symbolic gestures toward

reform that coexist with a refusal to integrate the knowledge, experiences, or political claims of directly impacted communities.

Selective Hearing and the Limits of Partisan Linkages Moreover, descriptive representatives may not be immune to these pressures. Legislators of color, who might be expected to bring experiential proximity to carceral communities, may face even greater pressure toward deracialization and distancing from stigmatized issues — pressure to signal, implicitly or explicitly, that they will not disrupt the racial hierarchy (Stephens-Dougan 2020). Descriptive congruence does not straightforwardly translate into discursive recognition when the electoral connection itself incentivizes silence about the communities most affected by state punishment. The representational slope for carceral citizens is thus steep not only because they lack electoral power, but because electoral structures distribute epistemic authority in ways that determine whose experiences count as politically relevant knowledge, whose claims are treated as legitimate testimony, and whose vocabulary is politically intelligible — and on each dimension, those most impacted by the carceral state are systematically disadvantaged.

Expectations

Pithy unified question?

Can have multiple.

below are ideas, for clear single unifying question — not saying I'm asking all 5

- how are carceral impacted populations represented in democratic institutions that govern them? ✓
- under what conditions do carceral impacted populations become recognized as political constituencies?
- how does lived experience with the carceral state shape political knowledge, and how does democratic representation respond to – or exclude – that knowledge? ✓
- what does democratic representation look like for populations systematically excluded from political participations?
- *more generally,* whose knowledge counts in democratic representation, and what happens when those most governed by the state are excluded as political knowers?

Can be complement to the more specific versions above.

Expectation 1: Carceral constituencies are a representationally challenging case because the same institutions that govern them may also suppress their visibility, voice, and epistemic standing. Representational failure here may be best understood not as the absence of policy+ responsiveness, but also as a failure to recognize them as legitimate constituents and knowers. Moreover, this is a "failure" that might actually not be understood to many (non-impacted, particularly) legislators as such, who view the fact of a conviction and loss of some civil rights as tantamount to rendering carceral citizens formally undeserving and excludable.

Expectation 2:

First, I expect to show that carceral constituencies will express, on average, policy preferences that differ from those of non-impacted respondents, and those differences will tend to be more reform oriented and generous towards carceral targets.

Expectation 2 version B: " " distinct political orientations from those of non-impacted constituencies (dual knowledgge, second face).

Expectation 3: Descriptive representation will be rare and conditioned.

Direct descriptive representation of carceral constituencies—understood narrowly as legislators with publicly identifiable conviction/incarceration histories—will be rare, uneven across states, and more likely where institutional eligibility barriers are lower and record visibility makes identification feasible.

Expectation 3: Symbolic and epistemic recognition absent or thin

In ordinary legislative discourse, carceral constituencies will rarely be named or centered as constituents; when they are recognized, that recognition will often be partial, surrogate, or rhetorically hollow rather than fully epistemically inclusive.

Legislators with direct, proximate, or sustained relational ties to carceral communities will be more likely than other legislators to recognize incarcerated people as constituents and, under some conditions, to treat them as credible knowers whose testimony should shape policy.

III. TEST 1: CRIMINAL LEGAL POLICY PREFERENCES AND POLITICAL ORIENTATIONS

Introduction

Direct contact with carceral policy in the United States is extensive.^[i] By year-end 2001, more than 5.6 million U.S. adults had served time in a state or federal prison (BOP 2003), and by 2010, an estimated 8 % had a felony conviction and 3 % had served or were serving prison time (Shannon et al 2017). While systematized data on non-felony convictions remain, as Stenson and Mayson (2018) put it, "absurdly, embarrassingly" (p. 732) elusive, they estimate 13.2 million such cases are filed annually. Many millions more experience the carceral state indirectly – through proximal contact – as family, friends, or neighbors of those incarcerated – or through victimization, having been harmed by a crime prosecuted by the state. While the legislators who make or maintain criminal legal policy governing these citizens often present the interests of these two groups as oppositional, we actually know very little about how such experiences shape how people think about criminal legal policy. Moreover, scholarship has pointed out that what we *think* we know about these communities' political orientations more broadly is shaped by assumptions about political knowledge and competence that these scholars have begun to challenge (Weaver, Piston and Prowse 2019).

This first chapter contains an analysis of original survey data of individuals impacted by the carceral state to examine whether and how different forms of carceral contact correspond with distinct criminal legal policy preferences and perceptions of incarcerated people. I suggest that communities impacted by the carceral state – via direct contact or incarceration, proximal contact, and victimization – may hold distinctive and coherent policy preferences that differ systematically from non-impacted populations. Moreover, these patterns will suggest not only that the preferences of those who are not directly impacted by criminal legal policy diverge from the preferences those who shoulder its burdens, but that they point to distinct political orientations grounded in experiential knowledge of the system, raising questions about the epistemic foundations of representation, and with implications for how we understand the representational relationship between legislators and carceral constituents – questions that subsequent chapters will take up directly.

Representation, Knowledge, and the Carceral State

Don't need any of this, I don't think.

The Epistemic Requirements of Responsiveness For some normative and empirical scholars of representation, whether legislators organize around constituent *interests* or constituent *preferences* constitutes a necessary choice between two bases of political representation (Miler 2018). Many take after Pitkin (1967), who grounds her interest-based approach on the view that voter preferences are too infrequent, inconsistent, and irrelevant for any given decision a representative takes up. Moreover, they cannot aggregate into a congealed and coherent *interest* that a legislator can act on, and that by definition must come prior to an act of representation (). Thus, according to Pitkin, representatives owe constituents “devotion to their interests” rather than “submission to their will” (). Even in Mansbridge’s anticipatory model - in which legislators act on their expectation of voters’ interests and preferences once they do “take shape,” defines interests as “enlightened preferences” that can be cultivated when representatives *educate* their constituents. In her critique of this disjuncture (and theories of responsiveness), Disch (2018) shows that both expose a paradox wherein theories of representation treat constituency preferences as existing prior to the representational relationship, and that legislators instead actively construct the constituencies and preferences they claim to represent. Yet, across these and even in Disch’s framework, three problems stand out.

First, even Disch’s framework may still devalue political preferences. Second, across these frameworks, a persistent requirement remains that a representative is able to accurately perceive of actual or (for Disch) *potential* constituencies and their orientations/preferences in the process (again, particularly for Disch) of constructing their interests. The point here is view their *interests* if the distinction needs to be made as valid, legitimate, worthy of consideration, etc. For carceral constituencies, this system may break down not because of a lack of coherent orientations, but because the epistemic economy systematically discounts what they know. Finally, findings from empirical political science and feminist epistemologists converge in showing that state interactions produce knowledge and shape preferences through lived, coercive, involuntary encounters with state power – before or rather than legislator persuasion, education, or manipulation (Mansbridge’s categories).

The Uninformed Citizenry and or Knowledge from Below Despite what Disch terms the “bedrock norm” and “tragedy and farce” assumptions that mass public’s preferences are incoherent and demonstrate absent political knowledge (Delli Carpini and Keeter), justifying scholarly attention to interest rather than preference congruence, other scholars have convincingly challenged this assumption on methodological (Pérez) and on substantive grounds (). Moreover, feminist epistemologists show how assumptions that marginalized race/class subjugated communities lack coherent political knowledge functions as a “prejudicial stereotype” —one that operates in the “economy of credibility” to deflate the epistemic standing of these communities before their claims are even heard. Pottle extends this into electoral politics: electoral incentives shape not only policy choices but the production and circulation of political knowledge, and groups with low strategic value are systematically excluded from the interpretive frameworks legislators use to define problems and solutions. Such exclusions are thus path dependent: excluded groups are constructed as uncredible knowers (testimonial injustice) and their knowledge is dismissed as outside the political mainstream (hermeneutical injustice).

From Social Constructions to Policy Feedback

start here.

Numerous factors influence policy preferences and political orientations, each with its own dedicated literature. Because my objective here is to establish an explanation for why those held by carceral constituencies might differ from those held by groups who are not impacted by the carceral state and are likely overrepresented in legislative debate, I briefly note one explanation - social constructions - before expanding on policy feedback literature to help explain why we should expect the aforementioned differences.

My theoretical starting point is policy views often reflect quick heuristic judgements about whether the group a given policy targets deserves policy help or punishment, and these judgements are often shaped by social constructions about those groups (Schneider and Ingram 1993) . Like stereotypes, these social constructions are produced by policy itself and discourse – both political, cultural, and popular. Thus, predominant racialized constructions of incarcerated people – “thugs,” “felons,” or “inmates,” – likely invoke ingratitude, self-orientation, and blameworthy-ness for their condition of confinement, likely translate to judgements carceral citizens are undeserving of policy help and deserving of punishment. Here, literature on social constructions of deservingness suggests that carceral state contact might influence policy preferences by definition, as it provides a different set

I think your mostly missing the point here. More general: people learn through experience. And contact is an extremely formative experience

of information about who carceral citizens are than the information provided by dominant social constructions alone (van Oorschot 2000b and 2006b, Feather and McKee 2009). However, SoRelle and Laws's (2023) observation that perceptions of individual deservingness may not linearly translate into support for policy overall suggests other explanations are needed.

Here, then, policy feedback literature shows that policies across domains shape attitudes towards the state and institutions, one's sense of "civic self," and political behavior as a process through which policies, once established, shape and reshape policy landscapes (Campbell 2012; Skocpol 1992). These "feedbacks" operate through two core mechanisms: resource effects, which concern the distribution of material benefits and costs, which can enact barriers or incentives to participation, and interpretive effects, which concern the ability of policy design to convey messages to its targets about their civic standing, and what they can expect and may ask of government as a whole (Campbell 2011; Mettler and Soss 2004; Mallory SoRelle and Serena Laws 2022).

This interpretive element offers an extension of social construction theory, in that it suggests that the messages a policy target infers from interacting with policy are unique, and should not be inferred to mirror the messages policy conveys about to broader audiences its targets. Moreover, this framework positions policy targets as "active agents" in the construction of meaning who internalize and respond to policy messages in different ways – by rejecting a negative construction or its policy implication and engaging in collective action, or conversely by differentiating oneself and disaggregating one's overall policy views from their perceptions of other beneficiaries (Soss 1999a; Goss 2012; Thurston 2018; SoRelle 2020; Lacombe 2022).

In the criminal legal domain, scholarly debate around the conditions under which carceral contact is politically mobilizing or demobilizing foregrounds this variation (cf. White 2022). Many carceral citizens, their networks, and neighborhoods internalize the clear "undeserving" messages that prison policy sends (Lee, Porter, and Comfort 2014; Weaver and Lerman 2010b). In doing so, feedback scholars also delineate the experiences and outcomes of people with not only direct, but also indirect or "proximate" contact, such as families of targets and neighborhood effects. For example, (Burch 2014) finds that high concentrations of incarceration and community supervision reduce political participation, creating "important spillover effects that suppress participation not only of the supervised

individual but also of those living around him or her” (197). But others find that both direct and proximal contact can mobilize (A. Anoll and Israel-Trummel 2019a; H. L. Walker 2020b; Ewald 2024). While these studies do not focus specifically on the link between contact and political orientations, they are nonetheless theoretically instructive about the role of direct and proximate contact on political behavior.

While many carceral citizens and their networks internalize the clear “undeserving” messages conveyed by criminal legal policy, research increasingly shows that such contact can also shape political attitudes towards the state – fomenting perceptions of institutional illegitimacy (A. Anoll and Israel-Trummel 2019a; A. P. Anoll, Epp, and Israel-Trummel 2022a; H. L. Walker 2020a; Lerman and Weaver 2014a). As such, I propose that interactions with the carceral system should also shape attitudes towards targets of the state – and the policy help or punishment they deserve in turn. While some work finds that targets of policy can internalize negative or undeserving constructions (Soss 1999b), much of the work on criminal legal contact stresses that demobilization is a product of resource effects or interpretive effects distinct from an “undeserving” self-conception (Lerman and Weaver 2014, White 2019). Instead, scholars emphasize that direct contact with the criminal legal system can heighten in-group solidarity and politically mobilize in spite of resource and interpretive feedbacks that should be demobilizing. (Walker 2020, Owens 2014). This is specifically the case when policy targets reject policy “teachings” about their lower civic status as part of a sense of systemic injustice – suggesting a reappraisal of both the system and those criminalized by it (Walker 2020). Among family of the incarcerated, Anoll (2022) suggests that higher rates of voting in states specifically with most stringent carceral disenfranchisement policies suggests “surrogate” mobilization, or a motivation to act on behalf a “deserving” incarcerated citizen, is at work. Thus, mobilization in response to both direct and proximal contact involve meaning-making processes that wed social solidarity with dampened perceptions of institutional legitimacy and trust.

But interaction with the carceral system may facilitate not just political, but also policy learning. Targets and their networks come to learn policy messages by experiencing policy burdens. Lee et al. (2014), for example, find that demobilizing ‘spillover effects’ are trace to family and loved ones of the incarcerated experiences with and reaction to policies whose costs they incur, like those of visitation,

expensive phone calls, and paying off fines and fees. That the experiences producing political responses are grounded in personal experience with policy suggest that contact may reorient how individuals think about policy, as it changes what they think (for example, what consequences to policy they imagine) when they think about policy.

Hypothesis or Expectation 1 - 2

To summarize, policy feedback and social construction literature offer reason to expect that individuals impacted directly by the carceral state will hold distinct political orientations. (There's a world where I just say Weaver et al suggest distinct political orientations that I expect will translate to or also involve distinct policy preferences. Therefore, I expect that:

H1: Direct and proximate experience with incarceration will lead to greater support for policies that offer help to carceral citizens

The interests of the carceral state's targets are often framed as orthogonal to the interests of victims of crime who it seeks to protect. And while feedback scholars acknowledge endogeneity challenges inherent to identifying causal effects of carceral state contact in a context of "cumulative burdens," or where the same individuals and communities routinely experience both direct and proximal contact (Michener 2018; Weaver and Lerman 2010c; Lerman and Weaver 2014b), experiences of victimization are part of this accumulation, yet crime victimization is rarely conceptualized as a form of policy contact in its own right[i]. An extensive literature shows that people who are incarcerated have disproportionately been victims of crime – one review article cited 31 of 37 papers support this overlap (Jennings et al 2012). Moreover, while 2% of the general US population report being victims of violent crime, up to 45% of carceral citizens have experienced pre-incarceration physical abuse, and 8.5 to 39.2% of specifically sexual abuse (Azimi et al 2019, Carlson and Shafer 2010, Messina et al 2007, Wolff and Shi 2012, Yoder et al. 2017). Still more experience violence while incarcerated (Wolff et al 2009). Thus, I anticipate that many of those who have been victims of crime may also report experiences of direct and proximal impact.

Although victims of crime are rarely theorized as policy feedback subjects, the concept of victimization is implicitly central to the literature. Policy feedback scholars emphasize how individuals interpret

Too Long

state actions—especially punitive or discriminatory ones—as signals of exclusion, abandonment, or devaluation (Soss 1999c; Lerman and Weaver 2014c). These “interpretive effects” can leave people feeling targeted, disrespected, or undeserving in the eyes of the state. In this context, experiences of secondary victimization—such as being disbelieved, ignored, or emotionally constrained by the criminal justice process (Lensa et al., n.d.) — can function much like the demobilizing interpretive effects faced by other negatively constructed policy targets. Yet unlike welfare recipients or formerly incarcerated people, crime victims are more often assumed to support the very policies and institutions that may reproduce their harm. Recognizing victimization as a form of state contact—and a potential site of interpretive rupture—opens new terrain for understanding how criminal legal experience shapes not only institutional trust and political participation, but also deservingness perceptions and carceral policy attitudes. This paper takes up that challenge by analyzing victimization alongside other forms of contact to assess how they each influence perceptions of who deserves help or harm—and what role the state should play.

Researchers provide evidence that more abstracted, dehumanized stereotypes about carceral citizens (Vasiljevic and Viki 2014) generate harsher assessments of culpability (Levinson 2007; Levinson, Cai, and Young 2010; Donovan 2007; Israel-Trummel and Streeter 2022) and sentences (Rehavi and Starr 2014) suggesting that information besides conviction and crime about carceral citizens should have a countervailing humanizing effect (Manza, Uggen, and Brooks 2006).

However, there are clear reasons why victimization may generate undeserving perceptions: victimization is highly a salient experience that for many drives negative affect toward those who commit crimes (Ditton et al. 1999) and provides a clear justification to focus on criminal culpability when considering incarcerated people overall (Culhane, Hosch, and Weaver, 2004).¹² However, this logic assumes clear victim-offender boundaries and risks ignoring the broader social context in which violence occurs. The overlap between victims and otherwise impacted groups is significant (Jennings, Piquero, and Reingle 2012). Victims of violent crime are disproportionately part of communities most heavily policed and incarcerated and most know their offender (Bureau of Justice 2024) – most individuals who experience incarceration have also been victimized, as well.⁷ Thus, while for many victims the proximity and salience of a ‘criminal’ may bolster negative social constructions and

deservingness perceptions, it might also translate to more nuanced perceptions of culpability and a closer alignment of identity that moderates negative affect.

Moreover, victims face restrictive, “sticky” social constructions – what Lens et al (2014) note generate negative feedbacks. While navigating narrow expectations of “appropriate” emotional responses in the criminal justice process – non-emotional victims risk disbelief while overly emotional victims face judgment – victims experience “secondary victimizations” that foment institutional distrust. In this way, victims may come to share with incarcerated individuals not only carceral exposure, but also skepticism toward the system itself and its moral judgments about who is or isn’t deserving (Walker 2020; Anoll & Israel-Trummel 2019). For some, this may produce more nuanced assessments of incarcerated people as victims of systemic injustice rather than mere perpetrators. For others, especially those who strongly identify with retributive justice or lack personal connection to offenders, deservingness perceptions may remain harsher. However, it is worth noting that victimization generally does not increase punitiveness – and that instead perceptions of crime are more important in driving punitive sentiment than actual crime - suggesting victimization may both lead to more moderated perceptions of carceral citizens and perceptions of what they deserve (Hale 1996; Kleck and Jackson 2017a, 2017b).

I therefore expect that:

~~H1-B~~ Victims of violent crime may vary more than other impacted groups in their support for policy help for carceral citizens, but on average, will still express more generous views than individuals with no direct or proximate contact with the carceral system. 13

[i] One notable exception is Levine and Russell (2023), who show how the design and financing of victim com-

pensation law constructs victims as morally deserving and politically worthy, helping expand state responsibility. Yet even here, the analysis centers on state building and symbolic policy meaning—rather than how victimization itself may function as a form of lived experience that may alter how individuals perceive the state, its targets, and what policies they deserve.

? seems beside your main point. Cut & just compare to impacted or note as open Q.

Data and Design

I examine the preferences and political orientations of impacted groups using original survey data using a national sample of 2,716 US adults collected in September 2024 through the platform Forthright. It recruits from a Bovitz proprietary panel (although the survey was hosted and deployed from Forthright). Participants were eligible if they were 18 years old, residents of the US, and provided informed consent, and took on average 30 minutes to complete the survey, for which they were paid 10 dollars. The sample aimed to be racially representative, is just under 51 percent women and 49 percent men, and leans more Democratic than the national average (39 versus 31 percent) but is equally Republican (25 percent). After applying exclusion restrictions for low response quality, failing to pass all three attention checks, robustness checks, and extreme outlier responses, the resulting final sample includes 2,222¹. The final sample includes 759 men and 845 women. The survey did not ask participants for highest attained level of education. Racial demographics of respondents break down as follows:

. appear in Table 1.

TABLE 1. Racial Composition of Sample

Racial ID	Black	White	Hispanic	Other
Count	246	1067	237	79

↑ consider combining Table 1 & Table 2... sample descriptors

~~Presence and Absence of Carceral State Contact~~

Having suggested that contact with the carceral state of various forms shapes political orientations, I now turn to measures of that contact. The September 2024 Survey introduces an 11-item experience battery, two items of which were designed to measure carceral state contact. Respondents were asked whether they or someone they know well had “been incarcerated in jail or prison,” or “been a victim of a violent crime.” These were presented in random order, included a “no/don’t know” option, and responses were not forced choice. The battery was introduced with the following:

¹Additional explanation

Survey Question

In the past five years, have you or someone you know closely experienced any of the following: Remember, your responses to this survey are confidential and will be used only for research purposes. Other experience in this section include: received TANF, received SNAP, immigrated to the US, been a member of a labor union, had an abortion or abortion pills, including to manage a miscarriage, been unemployed, been without insurance, been unable to vote in an election even though you intended to.

2

TABLE 2. Carceral Contact Types

Experience	Count	% of sample
Any Impacted		
Ever Incarcerated	170	7.7
Know Incarcerated	689	31.0
Ever Victimized	277	12.5
Not Impacted		

Keep down consistent

~~Carceral State Policies~~

The September 2024 survey also introduces an eight-item battery designed to measure support a range of carceral state policies. Six of these items were measured with a 5-point Likert scale, and two of these items were measured on a separate binary cluster. For those two binary-response questions, respondents were asked whether they would favor or oppose “allowing people convicted of felonies

²I also construct four binary indicators for the four contact types of interest, which represent respondents who have been incarcerated (1), know someone incarcerated (1), or have been victimized (1). The fourth binary is a constructed “impact” dummy to capture all 3 impacted groups, and compare then to respondents who report not being impacted in any way (0). I do not isolate for individuals who have only had one form of policy experience – much of the incarcerated sample overlaps with those who know incarcerated individuals, as would be expected. In this proposal, I may still have language that says “impact” that should be understood as referring to these four statuses.

to vote after serving their sentences,” and “requiring that jail and election officers ensure that people who are eligible to vote while incarcerated are able to exercise that right.” The remaining six items are part of a battery introduced as “changes to incarceration in the United States.” Response options here ranged from “strongly favor” to “strongly oppose,” with “don’t know/no opinion” recoded as a middle value. The six policies were:

- Allow the death penalty for people convicted of murder.
- Require that prison laborers be paid according to state minimum wage.
- Eliminating costs for phone calls between people in prison and their families or communities.
- Increasing funding for accredited GED and college courses in prisons.
- Maintaining the use of life without the possibility of parole sentences.
- Allow judges to offer parents of young children sentencing alternatives, like parole.

How many
Response
options

Indices (~~Prison Help, Prison Penalty~~)

Two items (support for the death penalty and for life without parole) are combined in a ‘prison penalty’ support index, and the remainder which involve policy help (minimum wage pay requirements for incarcerated workers, voting rights restoration, etc) are combined in a ‘prison help’ support index by averaging items. The help-oriented policies were reverse coded so that higher values indicate more support. Currently higher values on punitive policies indicate greater opposition.

Combined how?
Average?
Additive?
What's the
range of
scale
new variable

Cronbach’s alpha tests for the help-oriented policies confirm the battery is moderately internally consistent (alpha = 0.675), altogether – consistent with these policies reflecting a broad reform/help orientation rather than a perfectly unidimensional scale. All individual items have positive corrected item–total correlations (r.drop), with the prison-condition items loading more strongly (0.42–0.52) than the voting items (0.35–0.38), which is plausible given the cross-domain construction (substantive domain, and including 3-item scaled questions with 5-point scale items). “Alpha if item dropped” does not improve beyond the full 6-item scale (dropping any item yields 0.59–0.67), so there is no evidence that any single item is undermining reliability. One practical note: the two voting items have more missingness (n=1450 vs =2035 for the prison items), so models using the full 6-item index will have a

footnote

smaller analytic N; I can also report a prison-only version as a robustness check if useful.

A Cronbach's alpha test for the two punitive policy index ("prisonpen") shows that support for the death penalty for people convicted of murder and for maintaining life without parole are positively related but only modestly so ($r = .24$). Given the scale is only two items, alpha is not very informative beyond that correlation; substantively, it suggests the items tap a shared punitive-severity dimension but are not interchangeable (which seems plausible given the death penalty's distinct moral/legal features). I'm planning to keep this as a simple 2-item index but will also report item-level results / a DK-as-missing robustness check if needed.

Descriptive Comparison

I use the above-described data to evaluate my hypotheses through a series of progressively specified comparisons. The first step is to establish whether meaningful differences in policy attitudes and deservingness perceptions exist across types of criminal legal contact. I begin by presenting mean scores for policy support and deservingness ratings disaggregated by impact status: respondents who report direct contact with the criminal legal system, those with proximal connections (e.g., knowing someone who has been incarcerated), respondents who report victimization experiences, and respondents who report no contact.

If policy feedback mechanisms operate as expected, respondents who have experienced criminal legal contact should express greater support for help-oriented criminal justice policies and assign less negative deservingness scores to incarcerated people relative to non-impacted respondents. These descriptive comparisons therefore provide an initial test of whether contact is associated with systematic differences in both policy preferences and perceptions of the target population. At the same time, policy attitudes and deservingness perceptions need not move together. Individuals may support rehabilitative or assistance-oriented policies for pragmatic or utilitarian reasons while still viewing incarcerated people as generally undeserving, either in absolute terms or relative to other disadvantaged groups. Conversely, respondents may evaluate incarcerated people more sympathetically while still endorsing punitive policies if they believe punishment serves deterrent or public safety goals.

The central question, therefore, is whether contact produces consistent shifts across both dimensions.

If contact is associated with movement in both policy preferences and deservingness evaluations in the same direction, this would suggest the emergence of broader political orientations that integrate views about what should be done with how respondents perceive the people subject to those policies. By contrast, if deservingness evaluations remain largely unchanged while policy preferences shift, this would indicate that contact shapes respondents' views about appropriate policy responses without substantially altering their perceptions of incarcerated people themselves. Such a pattern would be consistent with a more pragmatic or experiential policy orientation rather than a transformation in underlying social constructions of the target group.

TABLE 3. Differences in Mean Policy Support by Carceral Contact Status

Policy Item	Not Impacted Mean	Directly Impacted (% diff.)	Proximally Impacted (% diff.)	Victimized (% diff.)
Help-oriented policy index	2.9	12.5*	7.5*	9.3*
Punitive policy index	2.13	7.3*	3.2*	4.1
Voting rights after serving felony sentences	2.62	13.6*	6.4*	9.5*
Ensuring eligible incarcerated people can vote	2.79	15.3*	6.5*	9.7*
Funding GED and college courses in prisons	3.08	9.6*	5.9*	6.1*
Sentencing alternatives for parents of young children	2.77	9.5*	4.8*	9.6*
Death penalty for people convicted of murder	2.59	3	0.7	3.4
Life without parole sentences	2.47	6.4	1.3	-1.5

Entries in comparison columns show percent difference from the not-impacted mean.

* indicates a statistically significant difference from the not-impacted group based on a two-tailed t-test.

need to move clearly label the estimate

add a + in front of all estimates to indicate not a mean

Results

Table [A] presents mean policy scores for non-impacted respondents alongside deviations for each impact subgroup. Across most help-oriented policies, we see that respondents with direct, proximal, and also victimization-based contact report higher support than do non-impacted respondents, with the largest differences observed among [xyz items]. Differences in support for punitive policies are [maybe more modest/concentrated in death penalty, reflecting. . .]. If carceral state contact is associated with distinguishable political orientations, we would expect differences to begin appearing in approaches to carceral state policy (?), as we begin to see here – not only on individual items, but across a range of policy domains.

However, policy support captures only one dimension of how individuals orient toward the carceral state and politics. How people perceive the targets of policy – the degree to which they perceive “negatively constructed” incarcerated people as deserving of sympathy, health, or intervention – offers a complementary look into these orientations. If criminal legal contact shapes not only what people think should be done but how they perceive those about whom policy is made, we would expect to see parallel variation in deservingness attributions. On the other hand, these may not move in tandem. Here then, Table B presents mean deservingness scores for carceral state targets by the same impact subgroups.

³The composite measures reported here are prisonhelp and prisonpen, which were constructed in the variable preparation script using the original response scales and coding decisions, including recoding “don’t know/no opinion” responses to the midpoint. At this stage, higher values on prisonhelp indicate greater support for rehabilitative policies, whereas higher values on prisonpen still reflect the original coding structure; I reverse-code the punitive index in the variable preparation script used for final analysis so that all measures ultimately move in a consistent substantive direction.

Carceral State Target Deservingness

As a secondary measure of carceral citizens orientations, I employ scores given to groups targeted by policy. At the outset of the survey, participants use a 0-100 sliding scale centered on 50 to indicate their perceptions of 60 groups after reading the following prompt:

Survey Question

Some people, groups, and organizations are viewed as contributing to the general welfare of society and worthy, and thus are deserving of sympathy, pity, or help. Typically, we describe members of these groups as good, smart, hardworking, loyal, disciplined, generous, caring of others, respectful, and creative.

Meanwhile, there are many other groups that are viewed as a burden to the general welfare of society, and are believed to be undeserving of sympathy, pity, or help. Typically, we describe members of these groups as greedy, disrespectful, disloyal, immoral, disgusting, dangerous, lazy, and expect others to care for them.

Based on what you know about these groups, how deserving or undeserving would you say each of these groups are, generally speaking? Here, 0 means most people in that group are completely undeserving. 100 means most people in that group are very deserving.

For this section, participants were randomly assorted into three sections (A, B, and C). All respondents saw the same 45 groups. Each section then reviewed an additional (20) unique groups. I employ scores given to three carceral state target groups seen by all respondents: “Incarcerated People/Prisoners,” “Criminals,” and “Incarcerated Women.”

TABLE 4. Differences in Mean Deservingness Scores by Carceral Contact Status

Impact Group	Incarcerated People / Prisoners	Criminals	Incarcerated Women	
Incarcerated People / Prisoners	43.39	27.3*	18.5*	16.7*
Criminals	29.42	33.2*	15.7*	22.1*
Incarcerated Women	50.12	20*	13.8*	15.3*

Entries in comparison rows show percent difference from the not-impacted mean.
* indicates a statistically significant difference from the not-impacted group mean based on a two-tailed t-test.

Discussion of results before transitioning to multivariate - will include plots A finding that carceral state contact is associated with more generous perceptions of CJ targets may suggest X things.

First, if contact shifts deservingness scores in the same direction as it does policy preferences, this would suggest that the orientations documented extend beyond policy preferences to encompass how impacted groups perceive groups about whom carceral state policy is made. In other words, I might take this as supportive of the hypothesis that carceral state contact drive broader political orientations.

Second, theories of social construction and deservingness generally hold that policy is downstream of social constructions, while policy feedback scholars emphasize the ways in which it is upstream. In other words, how groups are socially constructed – whether they are seen as generally deserving of policy help – may drive policy preferences, and policy design as legislators understand the groups their constituencies will either electorally reward or punish them for helping; policy itself may shape social constructions themselves. So, findings that deservingness and policy move together across all groups would re-enforce that dialectic relationship. (ie: deservingness perceptions correspond with policy preferences in some way).

However, an effect of carceral state contact on deservingness would suggest that carceral citizens/impacted publics are resistant to broadly held social constructions of criminal legal targets – that they may respond to messages about what targets of the carceral state deserve differently, or that they are exposed to a different set of messages about these targets and the state itself (less legitimate).

However, these results may also show that deservingness scores do not move with contact or policy preferences. This might suggest that contact shapes what people think should be done, without necessarily changing how they perceive targets or internalize/reflect publicly-held constructions. Such results might point to something more like a pragmatic or experiential policy orientation, that approaches policy irrespective of the deservingness of its target.

Introducing Demographic and Attitudinal Controls

We know that attitudes towards policy and particularly criminal legal policy may be shaped by other factors, and that impacted and non-impacted respondents may differ in demographic and attitudinal

dimensions that independently shape views of criminal legal policy and its targets or correlate with experiences with the carceral state. To assess whether the associations documented above survive these compositional differences, I estimate a series of OLS models controlling for demographic and attitudinal factors.

Race - Race is among the most consequential predictors of criminal legal policy attitudes, and political orientations more broadly. While white democrats in particular (rather than republics) have moved closer to Black democrats' levels of punitiveness in recent decades, Black Americans are still considerably less supportive of punitive policy (Enns). Eckhouse (2019) for example shows that differences how white and Black democrats criminal justice and policing policy are often as large or larger than those between Democrats and Republicans (Eckhouse). Moreover, they demonstrate distinct "issue" bundling, or broader understandings of both what causes crime and incarceration, and appropriate policy responses. Among respondents who attribute incarceration to personal responsibility, for example, Black respondents also attribute incarceration and crime to racial bias – white Democrats see personal responsibility and racial bias as unrelated.

In the 2024 Survey, respondents are asked whether they are White, Black or African American, Native American/Alaska Native, Asian/Asian American, Native Hawaiian/Other Pacific Islander, Middle Eastern/North African, Hispanic/Latino/a/e, or "my preferred response is not listed." I will use a series of indicator variables (non-Hispanic white, non-Hispanic Black, Hispanic/Latino, and "other" race).

Moreover, gender may also shape orientations toward the carceral state. Research generally finds that women express less punitive attitudes and greater support for rehabilitative approaches to criminal justice ([placeholder — Applegate, Cullen, & Fisher 2002 or similar]), though these differences are not uniform across all policy domains. I control for gender with a binary variable where respondents who identified as genderqueer or 'other' (of which there were relatively few) are randomly assigned to woman (0) and men (1).

This accounts for compositional differences between variously impacted and non impacted respondents that may independently shape criminal legal policy views. Second, it provides a conservative test of whether contact remains associated with policy attitudes when comparing respondents with

similar demographic characteristics. Even after controlling for these factors, however, there remains unexplained variation (discussion, transition to attitude controls).

If controlling for race, racial resentment, and gender, still indicates that experiences with the carceral state are associated with distinct policy views, we can understand that impacted versus non impacted groups differ even when comparing otherwise similar individuals. In other words, the relationship between criminal legal contact and policy views would not be explained by differences in race or gender. If introducing these controls reduces coefficients on impact and impact types but effects are still significant, this would indicate some degree of confounding – and some amount of confounding would not necessarily negate suggestions that experiences shape how individuals interpret the state, it's targets, and appropriate policy.

Attitudinal Factors

Next, having established that subgroup differences in orientations to policy and policy targets persist after controlling for demographic composition, I take up the question of what explains remaining variance. I proceed in two steps: introducing controls for political identity, and then introducing substantive attitudinal orientations. My aim is to progressively (a) assess how far the associations between contact and carceral state orientations extend beyond criminal justice preferences specifically; (b) explore explanations.

A natural explanation for remaining variance is the political identity of respondents. Indeed, partisanship strongly influences target social constructions and views of criminal legal policy (Smith and Kreitzer 2024), and political ideology is often foundational to punitive versus rehabilitative frameworks (). If this chapter's aims were exclusively isolating the effects of contact on carceral state policy preferences, partisanship and ideological identification would be first-order controls. But my aim is to orient this prospectus towards a broader question: whether contact with the carceral state is associated with coherent and distinct political orientations that may reflect experiential knowledge, and ask when those orientations are not only represented but recognized – or when and why they are excluded (plus, justify attention to preferences over interests). If orientations do reflect such “dual knowledge,” partisan identification and ideological self-placement may be partially downstream of the processes

under study – shaped by the accumulated experience of the carceral state on individuals/communities. Controlling for them in the demographic model would risk absorbing variation I want to understand.

Thus, I control for party affiliation respondents indicate whether they are Republican, Democrat, Independent, or ‘other party.’ I code for Republicans and Democrats—leaving independents and “others” as the comparison groups. The 2024 Survey also includes measures of ideological self-identification. Respondents indicate their location a 6-point scale ranging from “very conservative” to “very liberal” in response to the two following prompts: “On questions of fiscal policy, such as taxation, government spending, regulation, privatization, and trade, do you consider yourself to be liberal, conservative, or somewhere in between?” and “On questions of social policy, such as welfare, infrastructure, health care, education, and minority rights, do you consider yourself to be liberal, conservative, or somewhere in between?”

I combine responses to these items into a standardized self identified ideology scale ranging from 0 to 1, where higher values reflect more conservative orientations. Each item is first rescaled to a common 0–1 metric and then averaged to produce the composite score.

Political identity is a summary label. Respondents who identify as Democrats or liberal may still vary in their orientation toward carceral state policy and targets, as many scholars have shown (). Here then, I introduce a set of final controls to explore how carceral contact might change outcomes of interest. In doing so, I aim to suggest Z. Carceral state policy questions and attitudes towards its targets may reflect underlying dispositions towards groups who are negatively constructed or variously implicitly constructed as needing help, intervention, or support, socially transgressive, or unfamiliar or distant from mainstream society. As such, policy preferences and target perceptions may reflect broader attitudes towards these groups overall: whether one tends to be more or less tolerant of or sympathetic towards such groups. Moreover, it is possible that carceral state contact changes such underlying dispositions. The 2024 Survey allows me to controls for this disposition. Participants assign deservingness scores to a host of groups – welfare recipients, deservingness ratings of groups that are similarly framed in public discourse—such as welfare recipients, Medicaid and Medicare/SSN recipients, the unemployed, poor families, homeless individuals, and asylum seekers or refugees – whose ratings I standardize using the same within-respondent centering approach described above: for

each respondent, I subtract their overall average deservingness rating (across all 65 groups) from their ratings of these selected groups, then average the centered scores to produce a composite measure of generalized deservingness toward marginalized populations. (**check this standardization) As noted in the table below, Cronsbach alpha tests suggest these items have a common underlying dimension, enabling me to average these scores into a single index I call “core deservingness orientation.”

TABLE 5. Reliability Diagnostics for Core Deservingness Orientation Scale

Diagnostic	Score	
Raw Alpha	0.908	
Standardized Alpha	0.914	7.7
Avg Inter-Item Correlation	0.542	
Single Item Dropping Range	0.89-0.9*	

*The exception is deservingness scores of undocumented immigrants – the alpha increases to 0.916

Similarly, some respondents may have overall dispositions towards policies that help such groups. Again, the 2024 Survey allows me to test and create an index. I use standardized survey items on relevant policies to create a policy dispositional index, including support for Medicaid and unemployment assistance, views on minimum wage and government support for the poor, and the agreement with the importance of accepting refugees.

Finally, differences in political orientations across racial lines are themselves a product of many things and racialized systems, that shape, for example, differential exposure to crime and the carceral state. But differential exposure alone does not explain orientations towards carceral state policy and its targets. Rather, white support for punitive policy appears to have been mediated by the racialization of crime and punishment through “law and order” politics and racial-partisan realignment, and white opinion alone drove the mid-century “punitive turn” or rally behind punitive policy and carceral state expansion – even while Black communities experienced higher rates of victimization (Fresh 2024). Thus, racialized meaning and racial attitudes likely drive responses to criminalized carceral targets and policy. However, this relationship may not be consistent across all policies, as some may take on more racialized associations than others – symbolic racism often predicts opposition to policies like felon re-enfranchisement and jury service eligibility, for example (Chiricos et al 2012, Binnall & Petersen

2021).

I therefore also control for racial attitudes, using a racial resentment scale combining items from the ANES racial resentment battery and the FIRE scale, to capture the degree to which respondents' orientations toward the carceral state reflect broader racialized frameworks rather than (or in addition to) the effects of contact.

TABLE 6. OLS Models of Carceral Policy Orientations

	Model 2		Model 3	
	DV: prisonhelp	DV: prisonpen	DV: prisonhelp	DV: prisonpen
<i>Carceral Contact (ref: Not impacted)</i>				
Directly impacted				
Proximally impacted				
Victimized				
<i>Demographics</i>				
SES				
Black				
Hispanic				
Other race				
Male				
<i>Political Identity</i>				
Republican				
Democrat				
Ideology				
<i>Attitudinal Factors</i>				
Core deservingness orientation				
Policy disposition index				
Racial resentment				
Observations				
R^2				
Entries are OLS coefficients with robust standard errors in parentheses. The reference category for carceral contact is respondents reporting no impact. SES = socioeconomic status composite. * $p < 0.05$, ** $p < 0.01$, *** $p < 0.001$.				

IV. CHAPTER 2: DESCRIPTIVE AND SUBSTANTIVE REPRESENTATION OF CARCERAL CONSTITUENCIES

Having established that carceral constituencies have distinct, organized policy preferences and political organizations, this chapter turns to examine whether and where direct descriptive representation – as a first measure of representation – may exist. It proceeds in two steps. First, I ask where direct representation is institutionally possible. Descriptive representation of carceral constituencies is a unique case because people who have been convicted of crimes are often formally and informally stripped of their civil rights, including their right to vote and hold elected office. Thus, I map the landscape of state policies governing the eligibility of people with criminal convictions to vote and hold elected office. I show how state policies not only in whether they formally bar candidacy for people with convictions, but also in whether candidacy is indirectly conditioned through voter registration requirements or legal categorizations.

Second, focusing on states where such representation is formally possible, I propose and begin constructing an original dataset identifying legislators with direct experience of incarceration or criminal conviction.

The Carceral Representative? What this Means

Thus far, this proposal treats the “carceral constituency” encompassing those communities directly and proximally impacted by the carceral state. While direct contact with the carceral state may include experiences of police surveillance and arrest, I’ve treated “direct” impact as being convicted of a crime prosecuted by the state, and incarceration in prison or jail. I have (through analysis 1, and the literature has) established that *proximal* or indirect contact with the state, defined as having social ties to one or more people, has similar attitudinal effects. Moreover, I have noted that while some scholars treat proximal contact as *precluding* direct contact with the carceral state (Walker 2018), others emphasize that proximal contact often brings individuals in routine direct contact with the carceral state apparatus (Soc). Through communications surveillance, experiences of personal violation for prison visits or having these visits arbitrarily denied, proximally impacted individuals may have experiences of

systemic injustice (Walker); having particularly close relationships with carceral citizens can strengthen (empathy, perspective, etc) (Leighly & Matsubayashi); alongside these experiences comes distinct policy learning.

Moreover, studies of descriptive representation suggest its value stems in part from its ability to make groups feel like a representative body can understand its interests and reduce feelings of political alienation (Pantoja & Segura 2002). Indeed, women report having greater confidence in parliaments when they represent larger proportions (Schwindt-Bayer & Mischler 2005). For this reason, it's possible that legislators who are from communities most impacted by the carceral state and effectively communicate that identity could have some representational benefits/be in the mix.

Still, in this chapter I start by taking up descriptive representation of carceral citizens in its most direct form: legislators who have been directly affected, or convicted of crimes persecuted by the state. This is not only for the sake of a starting point, but rather because former incarceration/conviction is at least in principle a bounded status, where proximal impact exists on a continuum from immediate family to community exposure. Trying to enumerate both at the same time without having established the bounded status first creates a denominator problem: I should know the extent of direct descriptive representation before I can reason comparably about how proximity at various distances functions (in a way this should be breadcrumbs for setup for chapter 3's interviewing of incarcerated/formerly about experiences with different kinds of legislators, and interviewing different kinds of legislators). (need to edit/condense)

The Carceral Representative? Policy Across the States

In 1976, Carl "Bluejay" Velleca – a crime boss serving time at MCI-Concord in Massachusetts – ran for a seat on Concord's Board of Selectmen[i]. On its way to the Massachusetts Supreme Judicial Court, his candidacy drew national press coverage and attention to an apparent absence of policy and bureaucratic procedure around voter and candidate eligibility (the SCJ's ruling was ultimately about matters of domicile) – issues that are less salacious than "incarcerated crime boss for town office" but consequential for carceral representation. This episode is instructive in previewing what is to follow: that it the episode and this section is instructive less for what it resolves than for what it reveals; and

that part of what it reveals is that the formal edibility of people with criminal convictions to seek and hold public office is only the first question in a long chain of procedural dependencies.

That chain looks different in most states. From here, this section maps that variation. It proposes [categories] and procedures to follow in order to more completely address the question where carceral citizens can be directly descriptively represented and what is required. In few states, a felony conviction poses no formal bar to candidacy; in more, the bar is temporary – either reflecting policy that specifically conditions candidacy for office, or voter registration which is required to run for office. In other states, the bar is so cumbersome as to be treated as permanent. To my knowledge, Oklahoma is the only state with an outright and permanent bar on holding any elected office for all criminal convictions. However, this policy-scape is “live:” what requirements that hold one session may not the next.

Policy Classifications

TABLE 7. State Policy Environments for Candidacy with a Criminal Conviction			
Category	Definition	Illustrative states	Implication for direct descriptive representation
Open / minimal bar	No general felony bar to legislative candidacy, or only limited office-specific restrictions.	Massachusetts, Maine, Vermont, South Dakota (?)	Direct descriptive representation is legally possible with relatively few formal barriers.
Sentence-limited bar	Candidacy is barred only during incarceration or while a sentence is actively being completed.	[add states]	Direct descriptive representation becomes possible after sentence completion, but not during custody or supervision.
Restoration-dependent bar	Candidacy depends on restoration of civil or voting rights, often because candidates must be qualified electors or registered voters.	[add states]	Direct descriptive representation is formally possible, but contingent on completion of restoration procedures.
Offense-specific bar	Only certain convictions trigger disqualification, such as “infamous crimes,” corruption, election offenses, or crimes against the public trust.	[add states]	Direct descriptive representation is possible for some individuals but not others; interpretive ambiguity may matter.
Permanent / near-permanent bar	State law imposes a permanent disqualification, or restoration is so burdensome that the barrier functions as effectively permanent.	Oklahoma; [add others if applicable]	Direct descriptive representation is formally foreclosed or highly impracticable.
<i>Note:</i> Categories are intended to capture the practical policy environment for legislative candidacy, not every legal distinction in constitutional or statutory language. Illustrative state assignments remain provisional where rules depend on interactions between candidacy law, disenfranchisement law, restoration procedures, or ambiguous terms such as “infamous crime.”			

Across states, the legal environment governing candidacy for individuals with criminal convictions varies substantially, but several broad patterns emerge. A small number of states appear to impose little or no general statutory bar on legislative candidacy following a criminal conviction, meaning that individuals who have completed incarceration may in principle seek office without additional legal restoration requirements. More commonly, however, states condition eligibility on the completion of a sentence or the restoration of civil rights. In roughly a dozen states, individuals are explicitly barred from running for office while incarcerated or actively serving a sentence, but regain eligibility once those terms are completed. In another group of states, candidacy is indirectly conditioned on the restoration of voting rights or related civil status, often requiring individuals with felony convictions to complete waiting periods or petition for formal restoration before becoming eligible candidates.

A smaller set of states retain constitutional or statutory language disqualifying individuals convicted of certain categories of offenses—often described as “infamous crimes,” crimes against the public trust, corruption, or election-related offenses. These provisions can create ambiguity in practice because the scope of disqualifying crimes is frequently determined through statutory interpretation or case law rather than clearly enumerated lists. Finally, a very small number of states appear to impose permanent or effectively permanent disqualification from holding public office for individuals with felony convictions unless pardoned. At present, Oklahoma is the only state where an explicit permanent bar on holding elected office for all felony convictions could be identified with confidence, although in several additional states restoration procedures appear sufficiently burdensome to function as near-permanent barriers in practice.

Taken together, this mapping suggests that the formal possibility of direct descriptive representation by formerly incarcerated individuals is structured by state law in most jurisdictions. Preliminary review indicates that only a handful of states—potentially including Maine, Vermont, Massachusetts, and South Dakota—lack statutory provisions directly conditioning legislative candidacy on criminal conviction status. In the majority of states, however, eligibility is mediated through sentence completion requirements, civil rights restoration mechanisms, or offense-based exclusions.

However, these formal eligibility rules do not by themselves determine meaningful access to office. In many states, candidacy is indirectly conditioned through additional policies—such as

voter registration requirements, restoration procedures, or record-sealing laws—that shape whether individuals with convictions can realistically run for office.

Policy Interactions: Policies Further Conditioning Real-World Eligibility (Limited touch to other most important policies that condition what this means in practice):

1. Voting eligibility 2. Restoration mechanisms (automatic, discretionary, both voting/candidacy) 3. “Qualified Elector” + eligibility a. Not always just about voter eligibility 4. Definitions of “infamous crime”/“high crime”/“moral turpitude”; financial crimes 5. Records sealing/expungement x candidate disclosure obligations a. In at least two cases – those of Representative Simmons in Washington and Assemblymember Eddie Gibbs in New York – formerly incarcerated legislators ran for office once eligible. But for Representative Cherie Cruz and Representative Leonela Felix of Rhode Island, the expungement/sealing of their records was a precondition not by law, but in order for them to personally feel empowered to run for office. This raises the suggestion that state policies vis-à-vis the sealing and expungement of criminal records is a relevant interaction or determining meaningful eligibility. b. finance restrictions (maybe not relevant enough) 6. Parole/probation restrictions on association, travel, fundraising activity

FIGURE 1. Map of state eligibility environments (to be completed)



IV. Scale, or simple categories presented as map

Direct Descriptive Representatives

Using [] data to measure descriptive representation has a long standing history in political science. However, leading scholars in the field have highlighted the need to attend to intersectional identities and experiences (Carnes and Lupu 2024). Therefore, while there are many reasons this data may be incomplete(footnote), it's serves as a nonetheless important first step in both [something] and developing our understanding of the *direct* descriptive representation of carceral citizens. Thus, I ask: are carceral constituencies descriptively represented? In other words, what [proportion] of state legislatures are constituted by representatives who have been convicted of a crime prosecuted by the state?

Given [many] reasons, my expectation is that such representatives will be infrequent. This question may be better conceived even in terms of what percent of legislatures have even a single descriptive representative. Put more formally,

Directly Descriptive (Conviction) Representatives

As a first step toward assessing descriptive representation of carceral constituencies, I ask: are individuals with criminal convictions represented in state legislatures? More specifically, what proportion of state legislators have themselves been convicted of crimes prosecuted by the state?

Given the social stigma, legal barriers, and resource constraints associated with criminal conviction, my expectation is that such representatives will be rare. Indeed, the relevant empirical question may be less about proportions and more about presence: how many legislatures contain even a single directly impacted representative. I therefore advance three preliminary expectations:

Expectations (1) The number of legislators with criminal convictions will be extremely small.

(2) When such legislators do appear, they are more likely to do so in states with relatively permissive eligibility rules for candidates with criminal convictions.

(3) Carceral constituencies more broadly will remain descriptively underrepresented relative to the prevalence of criminal conviction in the population.

This analysis is intended as an exploratory empirical baseline rather than a comprehensive causal test. Its purpose is to establish the presence and distribution of directly impacted legislators and to assess the feasibility of constructing a broader dataset of criminal conviction backgrounds among state legislators.

Data Construction Strategy

Data Construction Strategy

Constructing a dataset of criminal conviction histories for state legislators presents several methodological challenges. Unlike demographic attributes such as race, gender, or occupation, criminal records are not systematically reported in legislator biographies or legislative archives. Instead, identifying such histories requires matching legislator-level personally identifiable information (PII) to criminal conviction records maintained by state courts or centralized criminal record repositories.

This process is complicated by substantial variation across states in the accessibility, organization, and cost of criminal record data. Some states maintain centralized online databases that allow public name-based searches, while others require formal requests through courts, state repositories, or notarized applications. In addition, the feasibility of matching records depends on the availability of legislator-level identifying information such as date of birth.

Because of these constraints, I adopt a staged data construction strategy. I begin with states where three conditions make matching feasible: (1) legal eligibility for individuals with criminal convictions to run for state legislative office, (2) accessible criminal conviction databases that allow name-based or date-of-birth searches, and (3) sufficient publicly available identifying information for legislators to enable reliable matching. I also take into account whether states maintain accessible legislative archives of floor speeches or committee hearings, which are relevant for subsequent analysis of symbolic representation.

Initial Cases: Minnesota, New Jersey

Initial Case: Minnesota

Minnesota provides a useful starting case for constructing this dataset. The state combines several features that facilitate matching criminal conviction records to legislative rosters. First, Minnesota law does not impose a categorical lifetime ban on legislative candidacy for individuals with criminal convictions once sentence requirements are satisfied. Second, the state maintains a centralized and searchable online criminal records system that allows name-based searches and includes identifying information useful for verification. Third, Minnesota legislators' biographical information is relatively complete, including year of birth and other identifying details that can assist in distinguishing individuals with similar names. Finally, Minnesota maintains extensive publicly accessible archives of legislative sessions and committee hearings, making the state well suited for subsequent analysis of legislative speech and symbolic representation.

Using Carnes and Hansen's (2023) state legislator database as a backbone, I will supplement missing identifying information where possible and match legislators serving in the 2023–2024 Minnesota legislative session to conviction records in the Minnesota court database.

(a) it's office eligibility rules, (b) the apparent accessibility of criminal (conviction) records, (c) the quantity of obviously available data on legislators' year of birth, at least, to serve as identifying data, and (d) its accessible archives of legislative speech.

Dependent Variable: Legislator Criminal Conviction

I operationalize criminal conviction as my primary measure of direct contact with the criminal legal system. Because record matching may involve varying degrees of certainty, I code conviction matches as an ordinal variable:

0 = no matching conviction record identified

1 = possible match with some measurement uncertainty

2 = confirmed match based on multiple identifying indicators

This approach allows the dataset to retain information about uncertain matches while distinguishing them from confirmed records.

Candidate States for Expansion

State	Conf	Records
MN	high	Centralized, searchable online, free, contains but does not require PII
ME		(a) Centralized repository does paid requests, maybe only name-based (b) at district courthouse
MA		(a) CORI – contingent access; (b) Via trial courts (e-access sometimes)
NJ	High	Centralized, searchable, free, sometimes yes sometimes no PII
VT		access

State	Conf	Records
NY		(A) Centralized, requests via mail; (b) county courts for felony, (c) district for misdemeanor
NH	Med-low	(a) Centralized repository, notarized mail on in person in Concord, requires knowl
Montana		(A) Centralized (transitioning); (B) via clerk of courts
South Dakota		Centralized, searchable, requires (?) DOB, starting 1989, (B) Free lookups at co
IL		access
ID		Request, need to ask if DOB required for name-based search
RI		
OR		
KA		
CT		Confirmed access
TX?		1-800-252-8683
WA		Confirmed access

Candidate Expansion States

After constructing an initial dataset for Minnesota, I will extend this procedure to additional states where similar data matching appears feasible. I have identified a preliminary set of candidate states based on several criteria: permissive eligibility rules for candidates with criminal convictions, accessible criminal record repositories, and sufficient legislator-level identifying information. Additional considerations include variation in record-sealing policies and the availability of legislative archives.

Table X summarizes a preliminary feasibility assessment of several candidate states, including Maine, Massachusetts(?), New Jersey, Vermont, New York, and South Dakota. These states vary in the accessibility and cost of criminal record data as well as in the degree to which records may be sealed or expunged. This staged approach allows the dataset to expand incrementally while accounting for differences in state record systems and data access procedures.

No or Low Bar to Eligibility

Eligibility After Sentence or Waiting

Note: my basic procedure is confirming how conviction records can be attained (“confirmed” just means they can be attained), confirming routes, process and/or requirements (preference are centralized repositories), noting how many birth years Carnes & Hansen have birthdays for, confirming cluster of year of births correspond to birthdays (can access complete bday), noting sealing, and where online process, doing a test of process. Last check for reference is for presence of session and hearing archives either through legislature website or elsewhere (ie, University of Washington houses some, South Dakota public broadcasting houses some). As I get a sense of viable states, I’m also trying to take closer targeted looks at states that would add important variation.

Methodology 1 – Results

Expected Results and Limitations

I expect the number of legislators with publicly identifiable criminal conviction records to be extremely small. Existing examples of directly impacted legislators suggest that some individuals may have had records sealed, expunged, or otherwise removed from publicly accessible databases. As a result, this dataset should be interpreted as capturing observable conviction histories rather than the full universe of directly impacted legislators.

Nevertheless, identifying even a small number of confirmed cases would establish an empirical baseline for the presence of directly impacted legislators and allow for subsequent analysis of their symbolic and substantive representational behavior. These results also motivate the broader focus of Chapter 3, which examines how legislators with varying degrees of carceral contact conceptualize and represent carceral constituencies.

V. TEST 3: QUALITATIVE

Research Question and Chapter Contribution Chapters 1 and 2 establish two features of carceral politics. First, carceral constituencies possess coherent political orientations and preferences. Second, those constituencies appear descriptively underrepresented in state legislatures. Yet I anticipate that

chapter 2 will leave an incomplete picture of descriptive representation, both in terms of the reality of legislators with convictions, and in terms of when such experiences actually matter. Moreover, this project's interest in ..how legislators interpret representational obligation, when they recognize carceral citizens as part of the constituency, or under what conditions they treat carceral citizens as credible political knowers rather than as policy objects.

This chapter takes up those questions. It asks how legislators recognize, interpret, and enact representation of carceral constituencies under conditions of civic exclusion and contested epistemic standing. More specifically, it investigates three questions: (1) under what conditions do legislators recognize carceral citizens as constituents; (2) under what conditions do legislators treat carceral citizens as credible knowers with legitimate political claims; and (3) how does experiential proximity to the carceral state shape representational practices toward carceral constituencies.

The chapter contributes to the prospectus in two ways. Empirically, it moves beyond what can be inferred from legislative composition, issue activity, or public records alone by examining the interpretive frameworks through which legislators define constituency, assess credibility, and understand representational obligation. Conceptually, it helps refine the broader theory developed in this project by specifying when marginalized groups become legible as political constituencies at all, and by clarifying the relationship among descriptive representation, symbolic recognition, epistemic inclusion, and responsiveness in carceral politics. In that sense, this chapter aims to offer an extension of the preceding empirical tests and also a step towards evaluating what those earlier patterns mean in practice and what mechanisms might explain them.

Cut? This chapter follows Chapters 1 and 2 because the earlier tests identify a puzzle but cannot resolve it. If Chapters 1 and 2 show that carceral constituencies are politically coherent yet underrepresented, and that descriptive or issue-based correlates of representation are at best partial or inconsistent, then the next question is how representation is actually construed and enacted by political actors themselves. Put differently, the earlier chapters can identify patterns of underrepresentation and suggest possible correlates, but they cannot reveal how legislators draw the boundaries of constituency, how they evaluate whose knowledge counts, or how carceral citizens themselves experience those practices. Because representation is fundamentally relational, these questions require attention to both

sides of the relationship: the representative and the represented. Accordingly, this chapter examines both how legislators conceptualize and engage carceral constituencies and how incarcerated, formerly incarcerated, and otherwise directly impacted actors evaluate those practices.

Methodological Approach

To address these questions, this chapter adopts an abductive qualitative approach and draws on constructivist grounded theory as a set of analytical practices for interviewing, coding, and theory development. This project's interests and its assertions that traditional academic knowledge production may have had a role to play in knowledge-based exclusion of carceral constituencies is normatively aligned with particularly Charmaz's (2014) constructivist reformulation of grounded theory. However, grounded theory is particularly appropriate when few extant theories or empirics answer a given question. While Charmaz's reformulation emphasizes that grounded theorists do enter the field with initial ideas or starting points, an abductive logic may be more appropriate if/given that I enter the field with theoretical expectations derived from scholarship on descriptive and symbolic representation, policy feedback, and epistemic injustice, as well as from prior engagement with incarcerated organizers and state level criminal legal policy advocacy. Existing theories do not fully explain when incarcerated or formerly incarcerated people become legible as constituents, when their claims are treated as politically credible, or why some legislators appear to engage carceral constituencies in ways that exceed what those theories would predict. Abductive analysis's attention to what Timmermans and Tavory (2012) call "surprises" - is analytically productive, as it requires that I specify what kinds of findings would challenge, extend, or require I modify this framework; in abduction, "surprises" require reformulating the conceptual structure rather than briefly tweaking the theory - reflecting Timmermans and Tavory's view of theory and data as in constant dialogue and theory as iteratively revised.

Constructivist grounded theory then provides further practical analytical tools for doing that work. Following Charmaz, I treat data and analysis as co-constructed through interaction rather than discovered neutral facts. Grounded theory is not used here to claim I enter the field without concepts, but rather as a set of practices - open-ended interviewing, constant comparison, memo writing, iterative coding, and category development - that coupled with abductive analysis's attention

to "surprises" allow analytical categories to be constructed and reconstructed sustained engagement with participants' accounts. This combination should support this chapters' aims by keeping analysis empirically grounded in actors' own understandings while placing those understandings in iterative dialogue with the broader theoretical framework of this project.

Case Logic This chapter focuses on the actors who directly participate in and come to understand representational relationships: legislators and their incarcerated or otherwise impacted constituencies.

My choice in including legislators should be well-established. Prior chapters cannot alone reveal how legislators interpret their representational obligations, hold constituencies affected by policy in relation to their policy work, or evaluate the credibility of marginalized constituencies' claims. Moreover, this chapter proceeds with an interest in continuing to gather data on legislators' proximity to the carceral state. Interviewing legislators will allow this chapter to examine the interpretive frameworks through which representatives construct constituencies and boundaries of their obligations to constituencies. Legislators routinely encounter competing claims, and understanding when the claims of carceral constituencies are treated as politically credible requires access to legislators' own interpretations. Interviews provide a means of accessing that, and legislators' reasoning in ways that cannot be observed from roll-call votes or legislative text alone.

At the same time, this requires understanding how representation is experienced, interpreted, and evaluated by the represented. This relational dimension is particularly important for groups who's political standing is contested. My objective in interviewing currently/formerly incarcerated organizers and directly impacted actors who have attempted to communicate with or influence legislators is in part simply to ask what kind of representation is good representation, and what kind of representation is typical representation to them. Doing so will provide insight into forms of recognition, dismissal, selective hearing, or symbolic inclusion that similarly may not be visible through institutional records alone.

Moreover, including both vantage points may help guard against treating elite self-understandings as sufficient evidence of representation (cite elite interviews). Legislators may describe themselves as attentive to marginalized constituencies, but those claims must be evaluated against the experiences of actors who attempt to engage them. Conversely, carceral actors' experiences of recognition or

exclusion may reveal representational practices that legislators themselves do not articulate explicitly. Examining both perspectives therefore provides a fuller picture of how representational relationships are constructed, contested, and experienced in carceral politics.

Sampling Strategy The sampling strategy for this chapter follows the logic of constructivist grounded theory while remaining consistent with the chapter's abductive orientation. In grounded theory, sampling begins with an initial purposive strategy but subsequently evolves through theoretical sampling, in which additional cases are selected in order to elaborate, refine, or challenge emerging analytic categories. Rather than aiming to represent a population statistically, theoretical sampling seeks data that illuminate developing concepts and clarify relationships among them.

Accordingly, sampling in this chapter proceeds in two stages: initial purposive sampling designed to capture theoretically relevant variation, followed by theoretical sampling guided by emerging analytic questions during the research process.

Scholarship on descriptive representation, policy feedback, and experiential proximity suggests that legislators' backgrounds and relationships to the criminal legal system may shape how they interpret constituency boundaries and evaluate the credibility of marginalized groups' claims. Thus, the initial legislator sample includes purposively selected legislators whose experiences vary along two theoretically relevant dimensions: experiential proximity to the carceral state, and professional orientation toward criminal legal institutions. Along the first dimension, the sample includes:

- Directly impacted legislators, including those who have themselves experienced incarceration or whose immediate family members have had criminal legal system contact.
- Proximally impacted legislators, including those with sustained personal, community, or professional relationships with incarcerated or formerly incarcerated individuals.
- Legislators without direct personal proximity, including those engaged in criminal legal policy and those who are not, in order to establish analytic contrast with the impacted categories.

Cutting across these proximity distinctions, the sample also includes variation in professional background: legislators with careers in corrections, policing, or prosecution; those with backgrounds

in defense, advocacy, or reform; and those without professional experience in criminal legal institutions. This second dimension matters because professional socialization within carceral institutions may shape how legislators interpret the credibility and political standing of incarcerated constituencies independently of personal proximity.

Next, this chapter includes interviews with incarcerated organizers and formerly incarcerated advocates who have direct experience navigating the boundary between carceral institutions and legislative politics. These participants illuminate how carceral-impacted actors interpret their own political standing, evaluate the responsiveness of legislative actors, and make sense of the conditions under which legislative engagement feels available or foreclosed.

Initial recruitment will proceed through existing professional networks and referrals, which are concentrated among organizers who have attempted direct legislative engagement. This starting point reflects practical access rather than a principled selection criterion, and it introduces a potential limitation: people for whom legislative engagement never seemed possible — or who disengaged after failed attempts — may be underrepresented in early interviews. Theoretical sampling will work against this by actively seeking contrast cases as analysis develops, including organizers with limited or no legislative contact, in order to clarify the conditions under which representational relationships are experienced as accessible versus structurally closed.

Consistent with grounded theory practice, sampling will not remain fixed throughout the research process. As interviews are coded and analyzed, emerging analytic categories will guide subsequent sampling decisions. Theoretical sampling will therefore be used to gather additional data that clarify the properties of key categories, identify variation within them, and refine relationships among them, and sampling will continue until categories are sufficiently elaborated to account for variation in the data and to clarify relationships among emerging concepts (or my time and resources are up).

To that point: while the goal is to develop analytically robust categories that illuminate how legislators recognize, interpret, and enact representation of carceral constituencies and how those practices are experienced by the actors who attempt to engage them — rather than statistically representative samples — this may be conditioned by feasibility constraints.

Interview Design

- semi-structured
- thematic domains

Analytical Strategy

- coding approach
- how concepts map onto theory

Anticipated Results or Contribution

VI. CONCLUSION & IMPLICATIONS

- What the project contributes

- Maybe actually notes on viability, backups, exit ramps, etc

[KM1]this could be where I go to -> we don't know about experience or -> why descrip should /may predict anything

[KM2]Also if I move the bulk of descriptive from the start of the intro to later or back to test 2a, then this would definitely go to 'but we don't know about experience' -

[KM3]Also then this would be more of a "What we know about descriptive rep suggests these expectations about non-weird rep"

REFERENCES